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SUPREME COURT OF TEXAS
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No. 25-0792 §

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Review from Case No. 08-24-00077-CV in the Eighth Court of Appeals, El Paso Texas; and on Appeal from the 65th District Court, El Paso County, Texas; Cause No. 2100093

PETITION FOR REVIEW

Respectfully submitted,
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Submitted October 10, 2025

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IDENTITIES OF PARTIES AND COUNSEL

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RECORD REFERENCES

Reporter's Record = R.R. + Page + Line No. ("ln")

Clerk's Record = C.R. + Page

TO THE SUPREME COURT OF TEXAS:

STATEMENT OF THE CASE

Nature of the Case:	This is a civil juvenile prosecution under the Texas Family Code.
Trial Court Judges:	Yahara Lisa Gutierrez
Trial Court:	65th District Court, El Paso County, Texas
Course of the Proceedings:	The State charged the juvenile via a determinate sentence petition with five counts of deadly conduct, discharge firearm, in civil proceedings in the 65th District Court, a designated juvenile court. (C.R. 44-46) A jury adjudicated him delinquent on all five counts on March 22, 2024. (C.R. 229-233) The trial court conducted a disposition hearing and sentenced him to three years in the Texas Juvenile Justice Department. (C.R. 244-246). This appeal followed.
Trial Court Disposition:	The trial court adjudicated the juvenile delinquent and ordered him to serve three years in the Texas Department of Juvenile Justice. (C.R. 244-246).
Parties in the Court of Appeals:	F.M.V. (the juvenile) and the State of Texas
Appellate Court District:	8th Appellate District
Appellate Justices:	Soto, Palafox, Salas-Mendoza
Citation of the Appellate Opinion:	*In re F.M.V.,* No. 08-24-00077-CV, 2025 WL 2146682 (App. -El Paso 2025, pet. filed).
Appellate Court Disposition:	The Eighth Court of Appeals reversed and remanded the case for further proceedings. *In re F.M.V.,* No. 08-24-00077-CV, 2025 WL

2146682 (Tex. App.—El Paso 2025, pet. filed). No hearings or motions are pending before the Court of Appeals. The State now petitions the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

A. Generally:

i. This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code §22.001(a), (b).

B. Reasons to Grant Review: The decision merits review because:

i. The appeal raises an issue of first impression as to the proper interpretation of Tex Fam. Code § 51.095.

ii. In its construction of the statute, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(5); and,

iii. The Eighth Court of Appeals has decided an important question of state law that should be resolved by this Court. *See Id.* 56.1(6).

ISSUE PRESENTED

In Texas, a juvenile statement must be signed in the "presence of a magistrate," with "no law enforcement officer…present" for the juvenile's statement to be admissible in evidence. A juvenile signed an incriminating statement in front of a magistrate. Officers were within the magistrate's line of sight but unable to hear the conversation- and the juvenile was not exposed to any words or actions on the part of the police. Did the trial court commit reversible error by admitting the juvenile's signed statement into evidence?

STATEMENT OF FACTS

A. The Shooting

On November 22, 2022, Officers were dispatched to a call in Canutillo, Texas. (R.R. Vol. II at 160:1). Maria De Los Angeles Ramirez and Leonardo Ramirez Torres were present when more than thirty bullets struck and entered their home. (R.R. Vol. III at 54:24 -55:6). Torres was the only one injured by the shots fired; a piece of metal entered his eye. (R.R. Vol. III at 58:25). When he arrived at the scene, El Paso County Sheriff's Detective Bastardo observed several gunshot holes in the residence and shell casings on the street. (R.R. Vol. III at 78:16-78:18).

Through the course of their investigation, officers learned that an altercation between F.M.V.'s friends and Leonardo Ramirez, Maria De Los Angeles Ramirez's son, occurred at the outlet mall prior to the shooting; threats were made to Leonardo Ramirez. (R.R. Vol. III. at 78:7-78:12). El Paso County Sheriff's Detective Bastardo located a surveillance video showing a white Dodge Charger which was the suspected vehicle involved in the shooting. (R.R. Vol. III. at 81:3-81:5; State's Exhibit 29). Andre Gilmer, an adult co-actor, was identified to be the driver of the white Charger; Detectives received several names of individuals involved, including F.M.V. (R.R.Vol. III. at 84:15).

A search warrant led to the weapons used; the co-actor was arrested; and a ballistic analysis was conducted. The weapons collected from the co-actor matched

the casings found at the scene. (R.R. Vol. III at 89:22-89:23). A few days later, Detective Bastardo met with F.M.V.'s mother, Itza Varela. Varela had reported him as a runaway, and she wanted to provide information to Detective Bastardo regarding the shooting. (R.R. Vol. III. at 37:19- 37: 22). Detectives also spoke with the F.M.V.'s girlfriend, Alexis Sigala, and she stated he sent her a video of the shooting on the day of the offense and he admitted to her that he was involved in the shooting. (R.R. Vol. III at 90:23-90:25).

B. F.M.V.'s Detention and Magistration.

On December 1, 2022, F.M.V. was detained and taken to the Northwest Patrol station where he received his Miranda warnings and asked if he wanted to provide a statement. (R.R. Vol. III at 104:13-105:9). F.M.V. was then taken to the jail magistrate.

The jail magistrate, Judge Sara Priddy, administered his Miranda warnings. (R.R. Vol. III at 107:5-107:6). Detective Bastardo and his partner were positioned at a distance from both F.M.V. and the magistrate, having no direct involvement in the process of reading or explanation of F.M.V.'s rights. (R.R. Vol. I at 9:21-25). Judge Priddy read his rights, one by one, and asked him questions to ensure he understood. (R.R. Vol. I at 12:13- 13:9).

Detective Bastardo took F.M.V. to the Juvenile Probation Department to obtain his statement. (R.R. Vol. III at 104:15). At the Juvenile Probation Department,

F.M.V. provided a statement admitting his involvement in the shooting, and the statement was typed and printed. (RR. Vol. III at 110:22 – 113:1).

After the statement was complete, F.M.V. was taken back to Magistrate Priddy, where she reviewed the statement with him. (R.R. Vol. III at105:7-105:9). While reviewing the statement with the magistrate, F.M.V. made a correction to the statement; he stated to the magistrate that one line was not his statement, and that line was crossed out and initialed by the magistrate and F.M.V. (R.R. Vol. III at 108:6-108:10). Magistrate Priddy and F.M.V. subsequently signed the statement, and he was released back to Detective Bastardo's custody.

C. <u>Trial and Disposition.</u>

F.M.V. was referred to the Juvenile Probation Department on five counts of Deadly Conduct Discharge Firearm. (R.R. Vol. III at 109:1-109:2). F.M.V. was tried by a jury in the 65th District Court on March 19, 2024; the jury found F.M.V. delinquent on all five counts of Deadly Conduct Discharge Firearm. (C.R. at 234). F.M.V. elected for the trial judge to decide the disposition; on March 22, 2024, the court sentenced him to three years commitment to the Texas Juvenile Justice Department. (C.R. at 244).

INTRODUCTION AND SUMMARY OF THE ARGUMENT

The dispute in this juvenile matter is legal not factual.

On a November evening in 2022, gunmen fired more than thirty bullets into the home of Maria de los Angeles Ramirez and Leonardo Ramirez Torres.[1] Fourteen-year-old juvenile FMV later confessed that his friend Andre—armed with an AR rifle—and his accomplice, Jonathan—armed with a .45 caliber handgun—picked F.M.V. up in a white, Dodge Charger. FMV guided them to the victims' home.[2] FMV "pointed out" the house, and Andre and Jonathan got out of the car and began shooting.[3] Those substantive facts have not been disputed.

The procedural facts aren't in dispute either. After an investigation, FMV was detained and Mirandized.[4] He was then taken to the jail magistrate where he was again read his Miranda warnings one-by-one.[5] Investigating officers were positioned at a distance from both the Appellant and the magistrate, having no direct involvement in the process of reading or explaining the Appellant's rights.[6] The detective then took FMV to the Juvenile

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[1] R.R. Vol. II at 160:1 and R.R. Vol. III at 54:24-55:6.

[2] *In re F.M.V.,* No. 08-24-00077-CV, 2025 WL 2146682, at *6 (Tex. App.—El Paso 2025, pet. filed).

[3] *Id.*

[4] R.R. Vol. III at 104.23-105:9.

[5] R.R. Vol. III at 107:5-107:6.

[6] R.R. Vol. I at 9:21-25.

Probation Department to obtain his statement.[7] After the statement was complete, FMV was taken back to the jail magistrate to sign the statement in the magistrate's presence.[8]

At trial, FMV challenged the manner in which section 51.095 of the Family Code was applied to his confession. Specifically, he noted that the magistrate supervised the signing of his confession with armed law enforcement officers about 30 feet away. FMV claimed that this violated subsection (a)(1)(B)(i), which prohibits law enforcement officers from being "present" while he was in the "presence" of the magistrate during signing. The trial court conducted a full evidentiary hearing. It then concluded that this Family Code provision was not violated when he signed—after he asked to correct it—his confession. The Eighth Court of Appeals disagreed—essentially concluding that "presence" in the statute means "constructive" presence or "line of sight." But the Court of Appeals analysis missed the mark by not viewing the statute as a whole. This presents an issue of first impression for this Court.

There is no direct guidance in the caselaw as to how "presence" should be construed here. However, in other criminal contexts, some Texas courts interpret "presence" to encompass both physical and sensory proximity, while in others, courts have construed "presence" to mean constructive presence rather than requiring actual eye or ear witness of

[7] R.R. Vol. III at 104:15.

[8] *In re F.M.V.,* No. 08-24-00077-CV, 2025 WL 2146682, at *10 (Tex. App.—El Paso 2025, pet. filed).

the events. *See discussion*, section II, *infra.*

At bottom, the Court of Appeals construction of "presence" only considered one instance of the term in the statute. But there were four more, and the Appellate Court's construction makes little sense when applied to the other four. For example, the child's statement must also be signed in the magistrate's "presence." Tex. Fam. Code § 51.095(a)(B)(i). But if law enforcement is in the child's "presence" 30 feet away and out of earshot—as it surely is under the Appellate Court's construction—then the magistrate could also hypothetically take the statement from a similar distance under that same construction—an unworkable result.

But the statute itself suggests a much more common-sense interpretation. Section 51.095(a)(1)(D) requires the magistrate to certify that her examination of the juvenile was "independent" of any law enforcement officers. Tex. Fam. Code § 51.095(a)(1)(D). In other words, all that is needed is that law enforcement officers not be "present" so that the magistrate has an opportunity to conduct a neutral examination of the statement outside the physical influence of law enforcement. That's all that happened here. To conclude otherwise was error.

And it is important to the jurisprudence of this state that this Court say so. As matter of law, this Court should hold that if law enforcement is outside the "presence" of the juvenile, such that the juvenile is able to offer independent corrections—as here—then, law enforcement officers are sufficiently outside his "presence" to admit the statement. The trial

court so found, and this Court should too.

ARGUMENT

A. The Magistrate Provided a Neutral Examination of F.M.V.'s Statement Outside the Physical Presence of Law Enforcement.

The purpose of the procedures in Family Code Section 51.095 is to ensure that a magistrates examination of a child is "independent" of any law enforcement officer or prosecuting attorney. *See* Tex. Fam. Code § 51.095(D) (requiring that the magistrate certify that her examination of the child was "independent" of any law enforcement officer or prosecuting attorney). The trial court concluded that FMV received exactly that: an independent examination by a magistrate that accepted his statement outside the "presence" of law enforcement. (C.R. 146). The Appellate court concluded otherwise because "law enforcement officers were present, some of whom were armed, without any showing that their presence was necessary for the magistrate's personal safety." *In re F.M.V.,* No. 08-24-00077-CV, 2025 WL 2146682, at *11 (Tex. App.—El Paso July 29, 2025) (publication pending).

But not only was F.M.V. repeatedly warned of his rights after his detention, the timeline of events demonstrates that both the Officers and the Magistrate strictly complied with all the requirements of § 51.095:

12:08 pm: **F.M.V. was picked up from his home by Detective Bastardo.**

- After speaking with the Juvenile's mother, Detective Bastardo picked up F.M.V. from his home and transported him directly to a Juvenile Processing

Office at the Vinton Patrol Station[9]. (R.R. Vol. 1 at 52:16-25).

12:49 pm: Detective reads F.M.V. his rights.

- F.M.V. told Detective Bastardo he wanted to provide a statement. Detective Bastardo read F.M.V. his rights at the Juvenile Processing Office. (R.R. Vol. 1 at 53-55). F.M.V. signed the El Paso County Sheriff's Department Juvenile Warning Sheet at 12:49 pm. (R.R. Vol. I: State's Exhibit 5).

Between 1:00 pm and 1:30 pm: Magistrate advises F.M.V. of his rights.

- Detective Bastardo then transported F.M.V. to the Jail Magistrate in downtown El Paso. He testified that Magistrate Priddy met with F.M.V. sometime between 1:00 pm and 1:30 pm. (R.R. Vol. 1 at 56: 6-9). He did not take F.M.V. inside the building because, "Well, he is a juvenile, so it's important to keep him away from other adults that have been in the system to avoid any intimidation, threats, avoiding psychological or physical threats of that nature." (R.R. Vol. 1 at 56: 15-18).

- Magistrate Priddy testified, "So whenever I go over the magistration, the rights I say what the right is, and then I ask questions to make sure that –just like a quiz, like a teacher would do, to make sure the defendant understands. Because I'm super sensitive, I really, really want to make sure. And this is maybe because of my defense attorney background. I want to make sure this kid understands what his rights are. And then I go super hard on the right to terminate the interview at any time, and ask them, You understand if even if you're in the middle of talking to someone, you can shut it down. So they're asking you questions you don't want to answer, even though you already answered some, you can stop at any time. Yes. And then I'll quiz with questions." (R.R. Vol. 1 at 12: 13-25;13:1-3)

- After a thorough explanation of his rights by a Magistrate[10] F.M.V. still agreed to give a statement. (R.R. Vol. 1 at13: 5-9). The officers were positioned at a distance from both F.M.V. and the Magistrate, having no direct involvement in the process of reading or explanation of F.M.V.'s rights. (R.R. Vol. 1 at 9:21-25). Both F.M.V. and Magistrate Priddy signed Statutory Warnings of Juvenile

[9] *See* Tex. Fam. Code § 52.025.

by the Magistrate Pursuant to § 51.09 of the Texas Family Code at 1:43 pm. (R.R. Vol. 1, State's Exhibit 1).

2:13 pm: F.M.V. gave a statement at the Juvenile Probation Department.

- After being advised of his rights by both Detective Bastardo and Magistrate Priddy, F.M.V. still wanted to provide a statement. (R.R. Vol. 1 at 58: 11-14). Sitting in the lobby of the Juvenile Probation Department, Detective Bastardo typed the statement as F.M.V. spoke. (R.R. Vol. 1 at 58: 17-20.)

- Detective Bastardo said he was with F.M.V. taking the statement for approximately one hour. (R.R. Vol. 1 at 59:1-7). F.M.V.'s sworn statement shows it was given at 2:13 pm. (R.R. Vol. 1, State's Exhibit 2)

- F.M.V. admits to showing the shooters where the victim's house was and recording the shooting with one of the shooter's phones. (R.R. Vol. 1, State's Exhibit 2).

3:22 pm: Magistrate Priddy reviews F.M.V.'s statement with him outside the presence of law enforcement and F.M.V. makes changes to his statement.

- Magistrate Priddy came outside to review the statement with F.M.V. (R.R. Vol. 1 at 60: 5-8). Magistrate Priddy signs a certification stating F.M.V. signed his statement with "no law enforcement or prosecuting attorney present." (R.R. Vol. 1, State's Exhibit 3**).**

- Detective Bastardo testified that he was approximately 30 feet from F.M.V.:

> A. Outside I'm about 30 feet away from them.
> Q. Okay
> A. But I'm – completely away from them.
> Q. You're not part of the conversation unless the judge calls you?
> A. Correct.

(R.R. Vol. 1 at 60: 11-16).

- After Magistrate Priddy reviewed the statement with F.M.V., she informed Detective Bastardo that F.M.V. had crossed out a line that he did not want in

the statement. (R.R. Vol. 1 at 61: 9-15).

3:30 pm: F.M.V. was taken to the Juvenile Probation Office to be processed

- Detective Bastardo testified that F.M.V. was transported back to the Juvenile Probation Department around 3:30 to 3:37 pm. (R.R. Vol. 1 at 61: 4-5).

B. Constructing "presence" under § 51.095 of the Family Code to mean "line of sight", rather than "physical presence" creates new law that should be reviewed.

There is a balance of purposes in the statute Children are provided added protections to ensure their legal rights are recognized and enforced, but at the same time the welfare of the community is protected by allowing juveniles to make custodial statements.

Under Texas Family Code § 51.095, a child's statement is admissible in evidence if the child received warnings from a Magistrate prior to making the statement, and the child signed the statement in the presence of a magistrate judge with no law enforcement officer or prosecuting attorney "present." Tex. Fam. Code § 51.095(1), (1)(B)(i). But the statute does not squarely define law enforcement "presence," and this Court has not yet taken up the issue. It should do so now.

Here, the Eighth Court of Appeals held that "the definition of the term "present" as being "in view" comports with a reading of §51.095 as a whole and its purpose." *In re F.M.V.*, 2025 WL 2146682 at *12. However, the court analyzed the application of that definition in only one of five uses of the words present or "presence" in the statute. The Court of Appeals held that the police were "present,"

in violation of the statute, when the Magistrate reviewed F.M.V.'s statement because "the fact that the officers were in F.M.V.'s view throughout the proceeding- and at time in his immediate presence- demonstrates an undeniable police presence." *Id.* at 14.

But Appellate courts have defined "presence" in other contexts—such as warrantless arrests, criminal sentencing or jurisdictional disputes—and have concluded "presence" means both physical and sensory proximity. *See Tates v. State*, No. PD-0486-23, 2025 WL 1812826 (Tex. Crim. App.—July 2, 2025) (publication pending). Some Texas courts have also recognized the concept of "constructive presence" which does not require physical proximity in cases concerning warrantless arrests. *See Thomas v. State,* 864 S.W.2d 193, 196 (Tex. App.—Texarkana 1993). This Court should clarify "presence" to mean physical and sensory proximity under this provision of the Family Code.

1. *As to criminal proceedings, most Texas courts interpret "presence" to encompass both physical and sensory proximity.*

In criminal contexts such as proceedings or sentencing, Texas courts have found "presence" to mean close physical proximity – within reach of the senses of sight and sound. Yet, here, the Eighth Court of Appeals concluded that "presence" in Family Code §51.095 means "in line of sight." *In re F.M.V.*, 2025 WL 2146682 at *12. This holding does not square with existing caselaw in criminal matters:

- In *Tates* a defendant appeared remotely via videoconferencing during the

punishment phase of his trial. *Id.* at 1. The court discussed the right of a defendant to be physically present during sentencing pursuant to Article 33 of the Code of Criminal Procedure, holding "presence" to mean physical, "in person," rather than virtual attendance. *Id.* at 6.

- Again, in *Pittman v. State,* 683 S.W.3d 433 (Tex. App.—San Antonio 2023), the San Antonio Court of Appeals stressed the importance of physical presence in criminal sentencing, holding that sentencing via videoconference violated the defendant's statutory right to be physically present under Article 42.03 § 1(a) of the Texas Code of Criminal Procedure.

So in the context of criminal proceedings, some courts have concluded that "presence" typically refers to physical attendance unless explicitly waived. But other courts have made space for "constructive" presence.

2. *In some contexts, "presence" means constructive presence-- being "in view" or "at hand", rather than requiring actual eye or ear witness of the events.*

Texas courts have also recognized constructive presence. For example, the term "presence" is frequently discussed in the context of warrantless arrests under Texas law. Article 14.01 of the Texas Code of Criminal Procedure permits peace officers to arrest individuals without a warrant if an offense is committed in their "presence or view." Tex. Code Crim. Proc. art. 14.01. Courts have interpreted "presence" to mean that the offense occurs within reach of the officer's senses, not necessarily requiring direct visual observation. *Thomas,* 864 S.W.2d at 196. *See also Astran v. State,* 780 S.W.2d 447 (Tex. App—Dallas 1989) (holding that trespass committed at an apartment complex was within the officer's "presence" even though the officer was not physically present when the manager told the defendant to leave).

Here, the Court of Appeals concluded that officers could not lawfully be "constructively present"—in the line of sight—when the magistrate accepted the juvenile's statement. *In re F.M.V.*, 2025 WL 2146682 at *14. But "constructive" presence does not square with the facial aims of the statute: to remove the pressure of law enforcement when taking an incriminating statement while providing for the juvenile's continued custody. *See* Tex. Code Crim. Proc. art. 51.095(a)(B)(i) (requiring that law enforcement not be "present" when accepting a signed statement from the child yet permitting the magistrate to determine that the "presence" of a law enforcement officer is necessary for the magistrate's security).

3. *The Court of Appeal's definition is unworkable when applied to the other three uses of "presence."*

Here, the Eighth Court of Appeals concluded that "presence" in § 51.095(B)(i) means "in line of sight", stating, "The definition of the term "present" as being "in view" comports with a reading of § 51.095 as a whole and its purpose. *In re F.M.V.*, 2025 WL 2146682 at 12 (*citing Shipp v. State,* 331 S.W.3d, 433, 437-438 (Tex. Crim. App. 2011)) (recognizing that the meaning of a term in statute may be determined by "the context of the statute as a whole [and] by a consideration of its purpose"). The Court of Appeals was right to cite to *Shipp.* Yet it failed to heed *Shipp's* call to analyze § 51.095 in its entirety when applying this definition of "presence." The word "presence" appears—not just in the single subsection the Court of Appeals analyzed but *four more* times in the same section of the Family Code. *See* Tex. Fam.

Code §§ 51.095(B)(i), 51.095(B)(ii) and 51.095(C). The Court of Appeals failed to analyze whether the application of the constructive definition of "presence" to all sections of the did service to the statute when read as a cohesive whole. The Court of Criminal Appeals asserted that it must, "We do not focus solely upon a discrete provision; [but rather] look at other statutory provisions as well to harmonize provisions and avoid conflicts." *Lira v. State,* 666 S.W.3d 498, 505-506 (Tex. Crim. App. 2023). Here, this was error.

Family Code § 51.095 uses the word "present" or "presence" *five* times, yet the Court of Appeals definition of "presence" makes little sense when applied to the others:

> (B) and:
>
> (i) the statement must be signed in the ***presence*** of a magistrate by the child with no law enforcement officer or prosecuting attorney ***present***, except that a magistrate may require a bailiff or a law enforcement officer if a bailiff is not available to be present if the magistrate determines that the ***presence*** of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the ***presence*** of the child; and
>
> (ii) the magistrate must be fully convinced that the child understands the nature and contents of the statement and that the child is signing the same voluntarily, and if a statement is taken, the magistrate must sign a written statement verifying the foregoing requisites have been met;
>
> (C) the child knowingly, intelligently, and voluntarily waives these rights before and during the making of the statement and signs

the statement in the ***presence*** of a magistrate; and

Tex. Fam. Code § 51.095(B) and (C) (emphasis added).

The Eighth Court of Appeals only applied the "constructive" – in line of sight-definition of presence or present to the second use of the word in subsection (B)—the use at issue here. But forcing the constructive definition of "presence" upon all five uses of the word, harms rather that harmonizes these subsections.

The first use of the word "presence" in subsection (B) and the final use of the word "presence" in subsection (C) mandates that the child sign the statement in the "presence" of the magistrate. Would the magistrate being down the block for the signing, but within line of sight, be a workable application of the statute? Without being physically close – to be able to see, hear, and observe the child, the magistrate would not be able to assess whether the waiver was knowing, intelligent, and voluntary. Physical presence is required to observe the juvenile's demeanor, assess comprehension, and ensure that there is no coercion. These functions that would be impossible if a magistrate were only within "line of sight."

Further, the third use of the word "presence" in subsection (B) addresses a situation where a magistrate may want a bailiff present for safety reasons. Would a bailiff within line of sight provide meaningful security to the magistrate?

The fourth use of the word "presence" in subsection (B)(i) prohibits a bailiff from carrying a weapon in the "presence" of a child. Again, here the proper

interpretation the word "presence" is physical proximity—not mere line of sight. To protect the integrity of the statement and to avoid undue influence, the weapon may not be physically close to the child. *See* Tex. Fam. Code § 51.095(D) (requiring the magistrate to certify that her examination was "independent of any law enforcement officer[.]") But if a law enforcement officer could not have a weapon where an examination took place outside of a custodial environment—simply because the officer was in the juvenile's line of site—the juvenile would effectively be released from custody.

Nor is it workable to infer that Legislature intended one meaning for "presence" in subsection (B)(i) and another in the other subsections: had the Legislature intended other meanings, it would have used other words. Moreover, the use of a physical proximity definition of "presence" does no harm to the Legislature's intent, "to ensure that children are fully informed and not influenced into waiving their rights when they are being interviewed by officers." *Ramos v. State,* 961 S.W.2d 637, 639 (Tex. App.—San Antonio 1998, no pet.). Here, officers were 30 yards away and outside the range of hearing the magisterial interview, and the juvenile felt comfortable enough to make corrections to his statement. (R.R. Vol. I at 60:11-16; 61: 9-15).

4. *The definition of "presence" in Tex. Fam. Code § 51.095 is important to the jurisprudence of the state of Texas.*

The statutory construction of the definition of "presence" in § 51.095 of the

Family Code has never been addressed by this Court. The Appellate Court's holding that officers may not be in the "line of sight" or in visual range of a Juvenile when the magistrate is reviewing a juvenile statement conflicts with a common-sense reading of the statute as a whole. Moreover, the constructive presence definition of "in line of sight" does not make sense when applied to each usage of the word in the statute—including the other four uses of present or "presence." Lastly, the purpose of the Family Code is not a rigid separation of the magistrate, juvenile, and officers, but rather to ensure that a fair interview with the magistrate took place. It does not require a removal from the officer's custody.

CONCLUSION AND PRAYER

There was understandable error below. This Court has never had the opportunity to address the meaning of "presence" in this section of the Family Code. But the Court should do so now. "Presence" should not be read in isolation to mean "line of site" or "constructive" presence. That reading does harm to the other three uses of "presence" in the statute. The trial court agreed: the juvenile was examined by the magistrate independently of the law enforcement officers 30 feet down the block. Yet the Court of Appeals failed to read the statute as a whole and consider its definition in light of the other four uses of "presence." For all these reasons, Petitioner State of Texas prays that this court **grant** this Petition for Review, and after full briefing and oral argument, **reverse and render** judgment in favor of the

State and **affirm** the judgment of the trial court.

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing document was sent to the attorney for the Appellant, Kelli Childress, 500 E. San Antonio, Room 501, El Paso, Texas 79901 via electronic mail at ReVargas@epcounty.com , on this 10th day of October 2025.

CERTIFICATE OF COMPLIANCE

Pursuant to the Texas Rule of Appellate Procedure 9.4(i)(1), (3), I hereby certify that this Appellate Brief contains 4,358 words. This is a computer-generated document created in Microsoft word, using 14-point typeface for all text and 12-point footnotes. In making this certificate, I am relying on the word count provided by the software used to prepare this document.

APPENDIX

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2. May 2, 2025 Notice from 8th Court of Appeals: Case set for submission without oral argument
3. Trial Court Judgment
4. 8th Court of Appeals Opinion
5. Rules and Statutes Cited

APPENDIX 1

ACCEPTED
08-24-00077-CV
EIGHTH COURT OF APPEALS
EL PASO, TEXAS
1/17/2025 4:47 PM
ELIZABETH G. FLORES
CLERK

No. 08-24-00077-CV

IN THE COURT OF APPEALS
EIGHTH JUDICIAL DISTRICT, EL PASO, TEXAS

FILED IN
8th COURT OF APPEALS
EL PASO, TEXAS
1/17/2025 4:47:20 PM
ELIZABETH G. FLORES
Clerk

In the Matter of F.M.V., Appellant,

v.

State of Texas, Appellee.

On Appeal from 65th Judicial District Court
El Paso County, Texas, Cause No. 2100227

BRIEF FOR APPELLEE, STATE OF TEXAS

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ORAL ARGUMENT REQUESTED

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STATEMENT OF THE CASE

F.M.V. was referred to the El Paso Juvenile Probation Department for five counts of Deadly Conduct Discharge of Firearm on November 22, 2022. (C.R. Vol. I at 46). A determinate sentence petition was filed and approved by the grand jury on December 14, 2022. (C.R. Vol. I at 44). On June 8, 2023, a motion to suppress hearing was set and heard by the trial court. (C.R. Vol. I at 108). The Appellant filed a memorandum in support of his motion to suppress on June 12, 2023. (C.R. Vol. I at 110). Subsequently, the State filed a memorandum in opposition of the Appellant's motion to suppress. (C.R. Vol. I at 126). The trial court filed an order denying the Appellant's motion to suppress on July 5, 2023. (C.R. Vol. I at 136). The trial court filed its Findings of Facts and Conclusions of Law on August 2, 2023. (C.R. Vol. I at 145). The case was heard by a jury in the 65th District Court on March 19, 2024; the jury found F.M.V. delinquent on all five counts of Deadly Conduct Discharge Firearm. (C.R. Vol. I at 234). The Appellant elected for the trial judge to decide the disposition; on March 22, 2023, the court sentenced F.M.V. to three years commitment to the Texas Juvenile Justice Department. (C.R. Vol. I at 244). Subsequently, the Appellant filed his notice of appeal on April 2, 2024. (C.R. Vol. I at 247).

STATEMENT ON ORAL ARGUMENT

The State respectfully requests oral argument to assist the Court in determining the admissibility of juvenile custodial statements under Section 51.095 of the Texas Family Code, the applicability of Article 38.23 jury instructions, and the trial court's discretion in excluding expert testimony in 28.01 hearings. *See* Tex. R. App. P. 38.1(e).

ISSUES PRESENTED

Appellant 's ' s Issue 1 (restated): Under Texas law, a custodial statement of a juvenile is not admissible unless the statement was made voluntarily, and certain statutory requirements were followed. Here, the trial court held that the Texas Family Code was followed and denied the Appellant's motion to suppress. Did the trial court abuse its discretion?

Appellant 's Issue 2 (restated): Under the Texas Code of Criminal Procedure, a jury must be instructed to disregard unlawfully obtained evidence. In this case, the trial court denied the Appellant's request for such an instruction because whether law enforcement was present for the magistrate's evaluation was not an issue of fact in dispute but rather a dispute as to a question of law. Did the trial court err in denying the Appellant's instruction request?

Appellant's Issue 3 (restated): A trial court has broad discretion in deciding what evidence to consider during a pre-trial hearing. In this case, the court held that the expert testimony proffered was not relevant to the issue of voluntariness of the Appellant's statement. Did the trial court abuse its discretion in excluding the expert's testimony?

STATEMENT OF FACTS

On a November evening in 2022, Officers were dispatched to a shot fired call in Canutillo, Texas. (R.R. Vol. II at 160:1). Maria De Los Angeles Ramirez and Leonardo Ramirez Torres were present when more than thirty bullets struck and entered their home. (R.R. Vol. III at 54:24 -55:6). Torres was the only one injured by the shots fired; a piece of metal entered his eye. (R.R. Vol. III at 58:25). When he arrived at the scene, El Paso County Sheriff's Detective Bastardo observed several gunshot holes in the residence and shell casings on the street. (R.R. Vol. III at 78:16-78:18).

Through the course of their investigation, officers learned that an altercation between the Appellant's friends and Leonardo Ramirez, Maria De Los Angeles Ramirez's son, occurred at the outlet mall prior to the shooting; threats were made to Leonardo Ramirez. (R.R. Vol. III. At 78:7-78:12). Detective Bastardo located a surveillance video showing a white Dodge Charger which was the suspected vehicle involved in the shooting. (R.R. Vol. III. At 81:3-81:5; State's Exhibit 29). Andre Gilmer, an adult co-actor, was identified to be the driver of the white Charger; Detectives received several names of individuals involved, to include F.M.V. (R.R. Vol. III. at 84:15).

A search warrant led to the weapons used; the co-actor was arrested; and a ballistic analysis was conducted. The weapons collected from the co-actor matched

the casings found at the scene. (R.R. Vol. III at 89:22-89:23).

A few days later, Detective Bastardo met with the Appellant's mother, Itza Varela. Varela had reported the Appellant as a runaway, and she wanted to provide information to Detective Bastardo regarding the shooting. (R.R. Vol. III. at 37:19-37: 22). Detectives also spoke with the Appellant's girlfriend, Alexis Sigala, and she stated the Appellant sent her a video of the shooting on the day of the offense and admitted to being involved in the shooting. (R.R. Vol. III at 90:23-90:25).

On December 1, 2022, the Appellant was detained and taken to the Northwest Patrol station where he was read his Miranda warnings and asked if he wanted to provide a statement. (R.R. Vol. III at 104:13-105:9). He stated he "kind of" understood his rights; however, he wanted to give a statement. The detective let him know that the magistrate would explain his rights to him. (S.R.R. Vol. I at 55:9-13).

The Appellant was then taken to the jail magistrate. The jail magistrate, Judge Sara Priddy, administered his Miranda warnings. (R.R. Vol. III at 107:5-107:6). Detective Bastardo and his partner were positioned at a distance from both the Appellant and the magistrate, having no direct involvement in the process of reading or explanation of the Appellant's rights. (S.R.R. Vol. I at 9:21-25). Judge Priddy read his rights, one by one, and asked him questions to ensure he understood. (S.R.R. Vol. I at 12:13- 13:9). Detective Bastardo took F.M.V. to the Juvenile Probation Department to obtain his statement. (R.R. Vol. III at 104:15). At the Juvenile

Probation Department, F.M.V. provided a statement admitting his involvement in the shooting, the statement was typed and printed. (RR. Vol. III at 110:22 – 113:1). After the statement was complete, the Appellant was taken back to the jail magistrate, where she reviewed the statement with the Appellant. (R.R. Vol. III at 105:7-105:9). While reviewing the statement with the magistrate, the Appellant made a correction to the statement; he stated to the magistrate that one line was not his statement, that line was crossed out and initialed by the magistrate and Appellant. (R.R. Vol. III at 108:6-108:10). Judge Priddy and the appellant subsequently signed the statement, and the Appellant was released back to Detective Bastardo's custody. Appellant was referred to the Juvenile Probation Department on five counts of Deadly Conduct Discharge Firearm. (R.R. Vol. III at 109:1-109:2).

SUMMARY OF THE ARGUMENT

Issue 1: The trial court did not err in denying F.M.V.'s motion to suppress. The trial court evaluated the voluntariness of the Appellant's custodial statement under the totality of the circumstances. The statute does not require law enforcement to relinquish custody of the juvenile rather it requires law enforcement to physically separate themselves from his conversation with the magistrate. The procedural safeguards under Section 51.095 of the Texas Family Code were fully satisfied, including independent evaluation and certification by the jail magistrate. Thus, the trial court did not abuse its discretion by denying the motion to suppress the Appellant's statement, as the statement was made voluntarily, knowingly, and intelligently.

Issue 2: The trial court properly denied the Appellant's request for an Article 38.23 jury instruction, as no disputed material fact regarding the legality of evidence collected was presented at trial. The "presence" of law enforcement during the magistrate's evaluation of the Appellant was a question of law, not an issue of fact in dispute. Since no genuine dispute of material fact was presented at trial to warrant the exclusionary instruction, the trial court did not abuse its discretion.

Issue 3: The trial court acted within its discretion in excluding the testimony of the Appellant's expert, Dr. April Thomas, during the suppression hearing. The trial court

appropriately exercised discretion in determining that her testimony would not assist the court in resolving the issue of voluntariness. Furthermore, the exclusion did not harm the Appellant as he did not call the expert to testify at the jury trial.

ARGUMENT AND AUTHORITIES

A. Issue 1: The trial court did not err in denying the Appellant's motion to suppress.

F.M.V.'s principal complaint on appeal is that the trial court erred by denying his motion to suppress his statement. The thrust of his argument is that his statement was not voluntarily, knowingly, or intelligently made. (App. Br. at 23). In the alternative, he contends that the trial court should have suppressed his statement due to a violation of Section 51.095 of the Texas Family Code which requires a magistrate to evaluate the voluntariness of a juvenile's custodial statement. (App. Br. at 23). He complains that the "State has not yet proven that this interrogation passes muster under a Totality of the Circumstances Test." (App. Br. at 23). However, the evidence produced during the suppression hearing provides ample support for the trial court's decision under the bifurcated standard of review.

1. The trial court's decision to deny the Appellant's motion to suppress is reviewed under a bifurcated standard of review.

When reviewing a trial court's ruling on a motion to suppress statements made during a custodial interrogation, the reviewing Court applies a bifurcated standard of review. *Guzman v. State*, 955 S.W.2d 85, 89 (Tex. Crim. App. 1997). The trial court's rulings on questions of law as well as mixed questions of law and fact that do not depend on credibility determinations are reviewed de novo. *Edwards v. State*,

691 S.W.3d 703 (Tex. App.—Houston [14th Dist.] 2024, no pet.). An abuse of discretion standard is applied to questions that rely upon the credibility of the witnesses or evidence. *Guzman*, 955 S.W.2d at 89. The Court must view the record in the light most favorable to the trial court's ruling and reverse the judgment only if it lies outside the zone of reasonable disagreement. *Hereford v. State*, 339 S.W.3d 111, 118 (Tex. Crim. App. 2011). When a trial court denies a motion to suppress, the appellate courts will uphold that ruling under any theory of the law applicable to the case. *Estrada v. State*, 154 S.W.3d 604, 607 (Tex. Crim. App. 2005).

Questions of law are reviewed de novo. *Ramos v. State*, 303 S.W.3d 302, 306 (Tex. Crim. App. 2009). When construing statutes, the Court must "seek to effectuate the 'collective' intent or purpose of the legislators who enacted the legislation." *Boykin v. State*, 818 S.W.2d 782, 785 (Tex. Crim. App. 1991). If the language of the statute is plain, the Court follows that language unless it leads to absurd results that the legislature could not have possibly intended. *Id*. at 785. When the plain language leads to absurd results, or if the language of the statute is ambiguous, the Courts consult extra-textual factors to discern the legislature's intent. *Id.* at 785–86.

After reviewing the evidence and record under a de novo and an abuse of discretion standard, this Court will find that the trial court did not err in the application of the law and that F.M.V. voluntarily, knowingly, and intelligently

provided a statement to law enforcement.

a. The voluntariness of Appellant's statement is reviewed under the totality of the circumstances.

In determining the voluntariness of a statement, the "totality of the circumstances surrounding the making of the confession must be examined to determine whether the confession was the product of an essentially free and unconstrained choice by its maker." *In re R.J.H.*, 79 S.W.3d 1, 6 (Tex. 2002). The established analysis considers the "evaluation of the juvenile's age, experience, education, background, and intelligence, and into whether he has the capacity to understand the warnings given to him, the nature of his Fifth Amendment rights, and the consequences of waiving those rights." *Fare v. Michael C.*, 442 U.S. 707, 725 (1979). The age of the juvenile is one factor, but it is not a controlling factor. *Moreno v. State*, 511 S.W.2d 273 (Tex. Crim. App. 1974). The courts have held that each case must be considered on its own facts to determine the voluntariness of a statement. *Id*. at 273.

b. Statutory Construction of Texas Family Code Section 51.095

F.M.V. alleges that his rights were violated because law enforcement was "present" while the magistrate read his rights, signed the written statement, and when the magistrate conducted her examination. Here, F.M.V. complains officers were within eyesight during the entire magistrate process, but importantly they were not within earshot. (S.R.R. Vol. I at 9:114-25). Neither the substantive statute nor its

interpretive counterpart are so rigid.

Family Code § 51.095 incorporates the warnings required by *Miranda*, with additional safeguards in place to protect juveniles. *See Miranda v. Arizona*, 384 U.S. 436, 479 (1966). The pertinent section for this brief is Section 51.095(a)(1):

> (a) the statement of a child is admissible if:
>
> (1) the statement is made in writing **while in custody of an officer**;
>
> (A) the child was given his warnings by a magistrate
>
> (B) the written statement is signed **in the presence of a magistrate without law enforcement present** unless the magistrate determines it is necessary for safety reasons, no weapons allowed in the presence of the child. The magistrate must be convinced that the child understands the nature and contents of the statement and that the child is signing it voluntarily;
>
> (C) the child knowingly, intelligently, and voluntarily waives these rights before and during the making of the statement and signs the statement in the presence of a magistrate; and
>
> (D) the magistrate certifies that the magistrate has examined the child independent of any law enforcement officer or prosecuting attorney, except as required to ensure the personal safety of the magistrate or other court personnel and has determined that the child understands the nature and contents of the statement and has knowingly, intelligently, and voluntarily waived these rights. [Emphasis added.]

There is thus a balance of the purposes in Section 51.095, children are provided added protections to ensure their legal rights are recognized and enforced but at the same time the welfare of the community is being protected by allowing juveniles to provide custodial statements. The intent of these safeguards has always

been to "ensure that children are fully informed and not influenced into waiving their rights when they are being interviewed by officers." *Ramos v. State*, 961 S.W.2d 637, 639 (Tex. App.—San Antonio 1998, no pet.). And section 51.095 (a) does not require officers to remove themselves so far from the juvenile as to relinquish custody. Tex. Fam. Code § 51.095(a)(1). By its express terms the interview takes place while the juvenile is in the "custody of an officer." It follows that "without law enforcement present" simply means that law enforcement is far enough removed from the presence of the magisterial interview so as not to effectively participate. *See id*.

Contrary to what Appellant urges, (App. Br. at 16) the import of cases analyzing Title 3 of the Family Code is not a rigid separation of the magistrate, juvenile, and officers but rather to ensure that a fair interview with the magistrate took place:

- In *Roquemore*, there was an unnecessary delay before the officers brought the juvenile to a Juvenile Processing Office, the officers took the juvenile to retrieve stolen items. *Roquemore v. State*, 60 S.W.3d 862, 872 (Tex. Crim. App. 2001). The court held that "a statement by a juvenile that is otherwise admissible under section 51.09 may be found to be inadmissible if the requirements of section 52.02(a) are not followed." *Id*. at 868.

- In *Reta v. State*, the juvenile was not brought back to the magistrate after providing a written statement, the court held that "because the magistrate did not examine Reta after he made his statement or make any inquiry to determine that Reta understood the nature and the contents of his statement, the trial court erred in denying Reta's motion to suppress." *Reta v. State*, No. 04-07-00564-CR, 2008 WL 2260726, at *1 (Tex. App.—San Antonio June 4, 2008, no pet.).

- *State v. Torres*, holding is not on point either. *State v. Torres*, 666 S.W.3d 735 (Tex. Crim. App. 2023). There, the magistrate in this case invoked the right to see the recorded video statement under section 51.095(f), but ultimately did not see the video or examine the juvenile after he gave the oral statement. *Id*. at 798. The Court of Criminal Appeals agreed that the statement was inadmissible because the magistrate was not permitted to make a determination that the juvenile's statements were made voluntarily. *Id* at 798. *Roquemore*, *Reta*, and *Torres* do not address the violations alleged by the Appellant.

Instead, Texas Criminal Court of Appeals has decided that law enforcement may be "present" while a magistrate reads a juvenile his rights. In *Herring v. State*, "by omitting such a prohibition, in Subsection 51.095 (a)(1)(A), the legislature expressed an intent that such a prohibition should not apply to the reading of the statutory warning." *Herring v. State*, 395 S.W.3d 161 (Tex. Crim. App. 2013).

Subsection 51.095(a)(1)(B) does provide that "The statement must be signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present." But this section does not define the term "present". It was apparently included as a safeguard to prevent coercion or undue influence from law enforcement. Tex. Fam. Code § 51.095. Subsection 51.095(a)(1)(D) also requires the magistrate examine the child independently from law enforcement, the purpose of this is to ensure the magistrate remains neutral during their examination. But neither of these provisions requires removal from the officer's custody. *See* Tex. Fam. Code 51.095(a)(1).

F.M.V. claims that the term "present", means "within eyesight". (App. Br. at

21). But the purpose of this section was to ensure that a juvenile has a neutral examination by the magistrate and that juveniles were not unduly influenced by law enforcement. *Matter of B.B.*, 567 S.W.3d 786, 790 (Tex. App.—San Antonio 2018, no pet.). To fulfill this purpose, law enforcement cannot be a party to the conversation or examination between a juvenile and a magistrate. *Id.* at 791.

In *Williams v. State*, the appellant's statement was not taken in a designated Juvenile Processing Office, instead it was taken in an empty homicide office. *Williams v. State*, 995 S.W.2d 754, 758–59 (Tex. App.—San Antonio 1999, no pet.) The Court held that although Section 52.025 was not complied with, the purpose of protecting juveniles from exposure to adult offenders and the stigma of criminality was still fulfilled. *Id.* at 758. "To hold that Williams's statement was inadmissible under these circumstances would be to place form above substance." *Id.* at 759. *See also McIntyre v. State*, 619 S.W.3d 311, 328 (Tex. App.—Fort Worth 2021, pet. ref'd) (the court held "under these circumstances, it would be placing form over substance to conclude that McIntyre's statement was inadmissible simply because at other times the room in which he was interrogated was used for other purposes, including interviewing adult offenders.") So too here.

2. The Appellant's statement was made voluntarily, knowingly, and intelligently, and the trial court did not err in finding there was no violation of Section 51.095 of the Texas Family Code.

F.M.V.'s first focuses on the voluntariness of his statement. (App. Br. at 9). He urges he was in a state of mania, did not understand English, and that due to his intellectual level and mental health he did not have the capacity to waive his rights intelligently, knowingly, or voluntarily. (App. Br. at 10). The testimony and video evidence does not support his argument. Video footage of the Appellant being detained was entered into evidence. In this video F.M.V. is calm and is speaking English to the detective. (S.R.R. Vol. I State's Exh. 4). At one point in the video the detective makes a joke about the handcuffs, and Appellant laughed. (S.R.R. Vol. I at 63:15). Additionally, while the Appellant and the detective were waiting for a marked patrol unit, the Appellant asked the detectives questions about what is going to happen next. (S.R.R. Vol. I at 63:14). This video evidence shows that he was intellectually able to hold a conversation and ask questions about his case, and that he clearly understands and speaks English. (S.R.R. Vol. I at 63:15).

Once F.M.V. arrived at the Juvenile Processing Office, he was read his rights. (S.R.R. Vol. I at 54:9). He stated he "kind of" understood them. (S.R.R. Vol. I at 55:9). To comply with Section 51.095, a juvenile does not have to understand and waive his rights at this point in procedure; the safeguards for juvenile statements were created for this exact situation. The detectives let him know that the magistrate

would explain his rights to him, and that is exactly what happened. (S.R.R. Vol. I at 55:13).

And when he was driven to the El Paso County Jail, law enforcement complied with Section 52.02 of the Texas Family Code by not bringing him into the building. (S.R.R. Vol. I at 9:8-13 and 56: 13-25 and Tex. Fam. Code § 52.02). This policy exists to keep juveniles and adult offenders separated, primarily to ensure there is no influence or interaction with adult offenders. Once they arrived at the jail, Judge Priddy exited the building in plain clothes, without a robe, and proceeded to read F.M.V. his rights. (S.R.R. Vol. I at State's Exh. 4). She testified that the detectives were not present in their conversation, as they were standing away from the judge and Appellant. (S.R.R. Vol. I at 9:114-25). She explained each right one by one, answered questions, and administered a small quiz for each right that was read to him. (S.R.R. Vol. I at 12:13-25 and 13:1-9). She stated she had no reason to believe that he did not understand what was happening. (S.R.R. Vol. I at 18:20-23).

After Judge Priddy completed this process, the Appellant decided to provide a statement. (S.R.R. Vol. I at 13:7-9). During this meeting with the magistrate, the Appellant was in the custody of the detectives, therefore the detectives could not leave the area due public safety concerns. *See* 51.095(a)(1) (regulating officers' "presence" at a magisterial interview while a juvenile is in the officers' "custody). Judge Priddy testified that if she felt that the detectives were too close to them, she would have asked

them to move further away. However, the detectives could have been present at this time of the procedure per established case law in *Herring*. *See generally Herring*, 395 S.W.3d 161 (noting that law enforcement prohibition does not apply to the reading of the statutory warnings.)

After F.M.V. provided his written statement at the El Paso Juvenile Probation Department, which is a designated Juvenile Processing Office, he was returned to the jail magistrate where he met with Judge Priddy for the second time. (S.R.R. Vol. I State's Exh. 4). This encounter was videotaped and entered as evidence. The first video begins at approximately 3:18 pm, in this video Detective Bastardo is seen talking to Judge Priddy and providing her with the statement and necessary forms under Section 51.095. (S.R.R. Vol. I State's Exh. 4). F.M.V. is then brought to Judge Priddy and his handcuffs are taken off. (S.R.R. Vol. I State's Exh. 4). The video then shows Detective Bastardo walk away from the Judge and Appellant. (S.R.R. Vol. I State's Exh. 4). In the video the detectives are having a conversation at a distance amongst themselves; law enforcement is not present in the conversation and examination taking place between Judge Priddy and Appellant. (S.R.R. Vol. I State's Exh. 4).

In the second video, Judge Priddy calls over the detective with a waive, at this time she explains what happened during her meeting with the Juvenile. (S.R.R. Vol. I State's Exh. 4). Had the detective and other law enforcement been present for the meeting, an explanation would not have been necessary, and the signing of the

statement would have been captured on the body camera. It is undisputed that the reasoning behind the no law enforcement presence rule is to prevent coercion and to allow a magistrate to make a neutral unbiased determination of voluntariness of the statement. *Matter of B.B.*, 567 S.W.3d at 790. Since the El Paso Jail Magistrates Office does not have a designated Juvenile Processing Office, the magistrates have implemented this procedure to ensure the intended safeguards are enforced.

Judge Priddy evaluated F.M.V. and concluded his statement was made voluntarily. After her evaluation she certified her determination of his competency and understanding of his rights by signing the Magistrates Certification of Juvenile's Competency to Make a Statement. (S.R.R Vol. I at State's Exh. 3). During the second meeting with Judge Priddy, F.M.V. was given the opportunity to review his statement. (S.R.R. Vol. I at 14:19-25). Once again, Judge Priddy questioned him about his statement. She asked if this was in fact his statement and informed him that he did not have to sign if it was not his words. (S.R.R. Vol. I at 14:19-25). He had the intellectual capacity to read and to assert his right to not sign something he claims he did not say. (S.R.R. Vol. I at 15:1-9). The fact that F.M.V. was comfortable enough to state he did not say a particular line shows that he was not under any undue influence. Judge Priddy testified that during both encounters she did not have any reason to believe that the Appellant did not understand what was happening. (S.R.R. Vol. I at 18:20-24) There was no evidence presented that he did not knowingly,

intelligently, and voluntarily waive his rights or that he was coerced into giving a statement by the "presence" of law enforcement.

At no point during the process of obtaining the statement or during the encounters with the magistrate were law enforcement in a position to coerce or influence the juvenile into providing a statement. Thus, the trial court did not err in denying Appellant's motion to suppress.

B. Issue 2: The trial court did not err in denying Appellant's requested Article 38.23 instruction.

Article 38.23 requires that the jury be instructed to disregard any evidence obtained in violation of the law, however a defendant is entitled to such instruction only if the legal evidence raises an issue as to how the evidence was obtained. Tex. Code Crim. Pro. art. 38.23. The Appellant claims he was entitled to an Article 38.23 instruction because he contends law enforcement was "present" during the magistrate's evaluation, but he points to no disputed fact that would render the instruction mandatory. (App. Br. at 26). Put another way, since there was no fact question for a jury to decide, no instruction was required.

Under Texas law, evidence obtained in violation of the Constitution or laws of the United States or Texas may not be admitted in a criminal case. Tex. Code Crim. Pro. art. 38.23. The provision requires that a jury instruction be given requiring the jury to disregard unlawfully obtained evidence. Tex. Code Crim. Pro. Art. 38.23. However, the jury shall only receive such instruction if there is a disputed issue of

fact that is material to the claim or a statutory or constitutional violation that would render the evidence inadmissible. *Madden v. State,* 242 S.W.3d 504, 510-11 (Tex. Crim. App. 2007). Here, the alleged violation of Section 51.095 of the Texas Family Code did not warrant the instruction because there was not a genuine dispute of material fact at trial that would entitle Appellant to an Article 38.23 instruction. Therefore, the trial court did not err in denying Appellant's requested 38.23 instruction.

1. This Court should not consider whether the excluded instruction was harmful because the Appellant was not entitled to the instruction.

The Appellant asserts that the trial court erred by denying his request for an exclusionary instruction in the jury charge. (App. Br. at 24). However, the Appellant is not entitled to the requested instruction as a matter of law. Tex. Code Crim. Pro. art. 38.23. In *Kirsch v. State*, the Court of Criminal Appeals established that, in reviewing an alleged jury charge error, a reviewing court must determine whether the charge contained an error, and if so, the next step is to assess whether the appellant suffered harm as a result of the error. *Kirsch v. State,* 357 S.W.3d 645, 649 (Tex. Crim. App. 2012). Specifically, the harm analysis is conducted only after the reviewing court has found that the trial court erred in excluding the requested instruction. *Id.* at 453. A defendant is only entitled to a jury instruction if it is legally justified and supported by the evidence presented at trial. *Madden*, 242 S.W.3d at

510. The Appellant fails to establish that the facts of the case warranted the requested exclusionary instruction. Since the trial court correctly determined, as a matter of law, that the officers were not "present", exclusion was not called for and no instruction was required.

Thus, since the trial court did not err in denying the exclusionary instruction, this Court need not conduct a harm analysis and the appellant's claim of jury-charge error should be rejected.

2. The Appellant failed to satisfy the necessary requirements to be entitled to the instruction.

It is well established law that the jury in a criminal trial decides the factual issues and the trial court decides the application of the law to the facts. *Conley v. State*, No. 08-22-00014-CR, 2023 WL 1478514, at *6 (Tex. App.—El Paso Feb. 2, 2023, pet. ref'd). A defendant is only entitled to a submission of a jury instruction under art. 38.23 if: (1) the evidence heard by the jury raises a fact issue; (2) the evidence on that fact is affirmatively contested; and (3) that contested factual issue is material to the lawfulness of the challenged conduct in obtaining the evidence. *Madden*, 242 S.W.3d at 510). "The only question is whether under the facts of a particular case an issue has been raised by the evidence so as to require a jury instruction, and where no issue is raised by the evidence, the trial court acts properly in refusing a request to charge the jury". *Id* at 510. Thus, the disputed fact must be

essential to determining the lawfulness of the challenged conduct. *Id.* at 511.

Affirmative evidence disputing a fact in question must be presented before the jury to warrant an Article 38.23 jury instruction. *Id.* at 513. Here, there is no dispute: Judge Priddy interviewed the juvenile apart from officers even if they were within view of the juvenile—who was in their custody. There were no facts in dispute, and the trial court made a determination as a matter of law.

The only evidence Appellant relies on is his cross-examination of Detective Bastardo and his own argument. (App. Br. at 26). But Detective Bastardo testified multiple times that he was away from the conversation between the Appellant and the magistrate, and that the officers were having a private conversation. (R.R. Vol 3 at 106:11 and 108:6). Precedent does not support appellant's arguments either:

- In *Garza v. State,* the appellant argued that the search of his vehicle was illegal and exceeded the permitted scope of an inventory. *Garza v. State*, 126 S.W.3d 79, 87 (Tex. Crim. App. 2004). The Court stated that "mere insinuations" by the appellant's attorney that the proper procedure for an inventory was not complied with did not raise a fact issue. *Id.* at 87. Similarly, F.M.V. has not provided this Court with any dispute of fact but has only commented on his own opinion as to the issue of law enforcement presence. (App. Br. at 26).

- In *Hamal v. State*, the defendant claimed there was an issue of fact regarding whether the trooper had reasonable suspicion to prolong the detention. *Hamal v. State*, 390 S.W.3d 302, 307 (Tex. Crim. App. 2012). The stop was captured on video and there was no testimony disputing what the video depicts; additionally, there was no dispute in what the trooper did, said, saw, or heard. *Id.* at 307. Like in *Hamal,* the interaction with Detective Bastardo, the Appellant, and the jail magistrate are depicted in video, these videos were entered into evidence and played for the jury. (R.R. Vol. III State's Exh. 35). Throughout the trial there was no evidence

> presented that contradicted what Detective Bastardo or Judge Sara Priddy did, said, or heard, and the videos showing the distance between the Appellant and Detective Bastardo are uncontroverted.

The Appellant is not entitled to an Article 38.23 instruction as he failed to satisfy the three requirements: (1) the evidence heard by the jury raises a fact issue; (2) the evidence on that fact is affirmatively contested; and (3) that contested factual issue is material to the lawfulness of the challenged conduct in obtaining the evidence. Appellant cites no evidence in the record to suggest that there was a contested dispute of material fact. (App. Br. at 26). Granting the instruction would improperly force the jury to answer a legal question. The trial court did not err in denying Appellant's requested art. 38.23 jury instruction. Thus, this Court should affirm the trial court's ruling.

C. Issue 3: The trial court did not err in prohibiting the Appellant's expert from testifying during the suppression hearing.

In his third point of error, F.M.V. contends that the trial court erred by prohibiting his expert witness from testifying at the suppression hearing. (App. Br. at 27). He argues that the expert testimony of Dr. April Thomas would have assisted the court in determining if, under the totality of the circumstances, the Appellant's statement was made voluntarily. (App. Br. at 30). Because the Appellant did not call this expert during the jury trial, his argument solely pertains to the suppression hearing. (App. Br. at 33). Additionally, F.M.V. acknowledges that the State's

objection to the expert was based on relevance not reliability. (App. Br. at 32).

The legislature intended for a 28.01 hearing to establish a discretionary and informal procedure for the trial court to conduct suppression hearings. *Ford v. State*, 305 S.W.3d 530, 539 (Tex. Crim. App. 2009). The legislature suggested, but did not require, several different methods to determine the merits of a motion to suppress, including information and facts set out in the motion itself, affidavits, or oral testimony. *Id.* The Court of Criminal Appeals held "a trial judge may use his discretion in deciding what type of information he considers appropriate and reliable in making his pre-trial ruling". *Id.* Hence, the trial court did not err in determining that the expert opinion was irrelevant.

1. This Court reviews the trial court's decision to exclude testimony under the abuse of discretion standard.

The standard of review for the exclusion of testimony based on relevance is generally an abuse of discretion. *Torres v. State*, 71 S.W.3d 758, 760 (Tex. Crim. App. 2002). The appellate courts will not overturn a trial court's decision to exclude evidence unless it is shown that the trial court acted unreasonably or outside the zone of reasonable disagreement. *Id.* at 760.

Texas Rule of Evidence 702 allows a qualified expert to testify if the trial court finds that "scientific, technical, or other specialized knowledge will assist the trier of fact to understand the evidence or to determine a fact in issue"; in this

capacity the trial court serves as the gatekeeper. Tex. R. Evid. 702. Before admitting expert testimony under Rule 702, the trial court must be satisfied that three conditions are met: (1) the witness qualifies as an expert by reason of his knowledge, skill, experience, training, or education; (2) the subject matter of the testimony is an appropriate one for expert testimony; and (3) admitting the expert testimony will actually assist the factfinder in deciding the case. *Davis v. State,* 329 S.W.3d 798, 813 (Tex.Crim.App.2010). The gatekeeper must ask the question, will the testimony being offered assist the trier of fact, and is the testimony "sufficiently tied" to the pertinent facts of the case? *Baldree v. State*, 248 S.W.3d 224, 228 (Tex. App.—Houston [1st Dist.] 2007, pet. ref'd).

The Court of Criminal Appeals has held that "an error is reversible only when it has a substantial and injurious effect or influence in determining the jury's verdict." *Gonzalez v. State,* 544 S.W.3d 363, 373 (Tex. Crim. App. 2018). Here, since expert testimony was propounded at the suppression hearing—and not at trial—the finder of fact was the trial judge, not the jury. So, this court need only determine whether the expert's testimony was so relevant that it would have led to suppression of the evidence.

2. The trial court properly used its discretion in prohibiting the Appellant's expert witness from testifying.

A trial court judge has discretion in deciding what information will assist her

in making a pretrial ruling. Here the judge decided that she would not need to consider Dr. Thomas's testimony when making her decision. (S.R.R. Vol. I at 83:19). The record shows that the judge took into consideration that Dr. Thomas had not spoken to or examined the Appellant. (S.R.R. Vol. I at 83:45). During the Appellant's proffer for the bill of exception, the witness testified that her expertise was in developmental psychology and legal psychology; she stressed that her research area involved adolescent risk behavior and juvenile delinquency. (S.R.R. Vol. I at 85:7-16). Most of her expertise and research involved why juveniles engage in risk taking behavior, not a juvenile's ability to understand his Miranda rights. (S.R.R. Vol. I at 85:6-10). Pointedly, she stated she is only "familiar" with research on a person's ability to voluntarily, knowingly, or intelligently waive their rights. Her testimony thus would have only provided generalities of juvenile development and delinquency. (S.R.R. Vol. I at 86:6-18).

Under the harm analysis, this Court must consider whether the alleged error has a substantial and injurious influence on the jury." *Gonzalez v. State*, at 373. But Appellant did not call this expert at his jury trial. So, even if her testimony was found to be relevant there is no harm because a jury was not influenced.

The Appellant provided the jury with expert testimony from Dr. James Schutte, who evaluated the Appellant. (R.R. Vol. III at 232:8). Dr. Schutte offered his opinion on F.M.V.'s capacity to waive his rights, concluding that F.M.V. did not

knowingly or voluntarily do so, allowing the jury to consider expert testimony on this matter. (R.R. Vol. III at 23248:6). The trial court properly used her discretion in excluding the witness's testimony, and this Court should affirm the trial court's ruling.

PRAYER

The trial court's rulings on the three issues raised should be affirmed based on the evidence and applicable legal standards. First, the trial court did not abuse its discretion in denying the motion to suppress, as the evidence demonstrated that the Appellant's statement was made voluntarily, knowingly, and intelligently under the totality of the circumstances and there was no law enforcement coercion or undue influence because, while officers could not relinquish custody of the juvenile, they did physically separate themselves from his conversation with the magistrate: they were not "present." Second, the denial of the requested jury instruction under Article 38.23 was proper, as no material fact issue was affirmatively contested to justify the instruction. Finally, the trial court acted within its discretion in excluding expert testimony during the suppression hearing. Consequently, this Court should uphold the trial court's judgment.

The State respectfully prays that this Court **affirm** the trial court's rulings and Appellant's adjudication for Deadly Conduct Discharge Firearm be affirmed.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing document was sent to the attorney for the Appellant, Kelli Childress, 500 E. San Antonio, Room 501, El Paso, Texas 79901 via electronic mail at revargas@epcounty.com, on this 17th day of January 2025.

/s/Katrina Noel Ayala
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CERTIFICATE OF COMPLIANCE

Pursuant to Texas Rule of Appellate Procedure 9.4(i)) (3), I hereby certify that Appellee's brief contains 6,622 words (excluding the caption, table of contents, table of authorities, signature, proof of service, certification, and certificate of compliance). This a computer-generated document created in Microsoft Word, using 14-point typeface for all text. In making this certificate of compliance, I am relying on the word count provided by the software used to prepare this document.

/s/Katrina Noel Ayala
Katrina Noel Ayala

APPENDIX

1. **Tex. Fam. Code § 51.095**
2. **Tex. Code Crim. Pro. § 38.23**

APPENDIX 1

Vernon's Texas Statutes and Codes Annotated
Family Code (Refs & Annos)
Title 3. Juvenile Justice Code (Refs & Annos)
Chapter 51. General Provisions (Refs & Annos)

V.T.C.A., Family Code § 51.095

§ 51.095. Admissibility of a Statement of a Child

Currentness

(a) Notwithstanding Section 51.09, the statement of a child is admissible in evidence in any future proceeding concerning the matter about which the statement was given if:

(1) the statement is made in writing under a circumstance described by Subsection (d) and:

(A) the statement shows that the child has at some time before the making of the statement received from a magistrate a warning that:

(i) the child may remain silent and not make any statement at all and that any statement that the child makes may be used in evidence against the child;

(ii) the child has the right to have an attorney present to advise the child either prior to any questioning or during the questioning;

(iii) if the child is unable to employ an attorney, the child has the right to have an attorney appointed to counsel with the child before or during any interviews with peace officers or attorneys representing the state; and

(iv) the child has the right to terminate the interview at any time;

(B) and:

(i) the statement must be signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present, except that a magistrate may require a bailiff or a law enforcement officer if a bailiff is not available to be present if the magistrate determines that the presence of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the presence of the child; and

(ii) the magistrate must be fully convinced that the child understands the nature and contents of the statement and that the child is signing the same voluntarily, and if a statement is taken, the magistrate must sign a written statement verifying the foregoing requisites have been met;

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(C) the child knowingly, intelligently, and voluntarily waives these rights before and during the making of the statement and signs the statement in the presence of a magistrate; and

(D) the magistrate certifies that the magistrate has examined the child independent of any law enforcement officer or prosecuting attorney, except as required to ensure the personal safety of the magistrate or other court personnel, and has determined that the child understands the nature and contents of the statement and has knowingly, intelligently, and voluntarily waived these rights;

(2) the statement is made orally and the child makes a statement of facts or circumstances that are found to be true and tend to establish the child's guilt, such as the finding of secreted or stolen property, or the instrument with which the child states the offense was committed;

(3) the statement was res gestae of the delinquent conduct or the conduct indicating a need for supervision or of the arrest;

(4) the statement is made:

(A) in open court at the child's adjudication hearing;

(B) before a grand jury considering a petition, under Section 53.045, that the child engaged in delinquent conduct; or

(C) at a preliminary hearing concerning the child held in compliance with this code, other than at a detention hearing under Section 54.01; or

(5) subject to Subsection (f), the statement is made orally under a circumstance described by Subsection (d) and the statement is recorded by an electronic recording device, including a device that records images, and:

(A) before making the statement, the child is given the warning described by Subdivision (1)(A) by a magistrate, the warning is a part of the recording, and the child knowingly, intelligently, and voluntarily waives each right stated in the warning;

(B) the recording device is capable of making an accurate recording, the operator of the device is competent to use the device, the recording is accurate, and the recording has not been altered;

(C) each voice on the recording is identified; and

(D) not later than the 20th day before the date of the proceeding, the attorney representing the child is given a complete and accurate copy of each recording of the child made under this subdivision.

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(b) This section and Section 51.09 do not preclude the admission of a statement made by the child if:

(1) the statement does not stem from interrogation of the child under a circumstance described by Subsection (d); or

(2) without regard to whether the statement stems from interrogation of the child under a circumstance described by Subsection (d), the statement is:

(A) voluntary and has a bearing on the credibility of the child as a witness; or

(B) recorded by an electronic recording device, including a device that records images, and is obtained:

(i) in another state in compliance with the laws of that state or this state; or

(ii) by a federal law enforcement officer in this state or another state in compliance with the laws of the United States.

(c) An electronic recording of a child's statement made under Subsection (a)(5) or (b)(2)(B) shall be preserved until all juvenile or criminal matters relating to any conduct referred to in the statement are final, including the exhaustion of all appeals, or barred from prosecution.

(d) Subsections (a)(1) and (a)(5) apply to the statement of a child made:

(1) while the child is in a detention facility or other place of confinement;

(2) while the child is in the custody of an officer; or

(3) during or after the interrogation of the child by an officer if the child is in the possession of the Department of Family and Protective Services and is suspected to have engaged in conduct that violates a penal law of this state.

(e) A juvenile law referee or master may perform the duties imposed on a magistrate under this section without the approval of the juvenile court if the juvenile board of the county in which the statement of the child is made has authorized a referee or master to perform the duties of a magistrate under this section.

(f) A magistrate who provides the warnings required by Subsection (a)(5) for a recorded statement may at the time the warnings are provided request by speaking on the recording that the officer return the child and the recording to the magistrate at the conclusion of the process of questioning. The magistrate may then view the recording with the child or have the child view the recording to enable the magistrate to determine whether the child's statements were given voluntarily. The magistrate's determination of voluntariness shall be reduced to writing and signed and dated by the magistrate. If a magistrate uses the procedure described by this subsection, a child's statement is not admissible unless the magistrate determines that the statement was given voluntarily.

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Credits

Added by Acts 1997, 75th Leg., ch. 1086, § 4, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 982, § 1, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1477, § 1, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 1297, § 7, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1420, § 21.001(29), eff. Sept. 1, 2001; Acts 2005, 79th Leg., ch. 949, § 5, eff. Sept. 1, 2005; Acts 2007, 80th Leg., ch. 908, § 8, eff. Sept. 1, 2007; Acts 2011, 82nd Leg., ch. 110 (H.B. 841), § 3, eff. May 21, 2011; Acts 2011, 82nd Leg., ch. 1158 (H.B. 2337), § 1, eff. Sept. 1, 2011.

V. T. C. A., Family Code § 51.095, TX FAMILY § 51.095

Current through the end of the 2023 Regular, Second, Third and Fourth Called Sessions of the 88th Legislature, and the Nov. 7, 2023 general election.

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APPENDIX 2

Vernon's Texas Statutes and Codes Annotated
Code of Criminal Procedure (Refs & Annos)
Title 1. Code of Criminal Procedure
Trial and Its Incidents
Chapter Thirty-Eight. Evidence in Criminal Actions (Refs & Annos)

Vernon's Ann.Texas C.C.P. Art. 38.23

Art. 38.23. Evidence not to be used

Currentness

(a) No evidence obtained by an officer or other person in violation of any provisions of the Constitution or laws of the State of Texas, or of the Constitution or laws of the United States of America, shall be admitted in evidence against the accused on the trial of any criminal case.

In any case where the legal evidence raises an issue hereunder, the jury shall be instructed that if it believes, or has a reasonable doubt, that the evidence was obtained in violation of the provisions of this Article, then and in such event, the jury shall disregard any such evidence so obtained.

(b) It is an exception to the provisions of Subsection (a) of this Article that the evidence was obtained by a law enforcement officer acting in objective good faith reliance upon a warrant issued by a neutral magistrate based on probable cause.

Credits

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722, eff. Jan. 1, 1966. Amended by Acts 1987, 70th Leg., ch. 546, § 1, eff. Sept. 1, 1987.

Vernon's Ann. Texas C. C. P. Art. 38.23, TX CRIM PRO Art. 38.23
Current through the end of the 2023 Regular, Second, Third and Fourth Called Sessions of the 88th Legislature, and the Nov. 7, 2023 general election.

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APPENDIX 2

COURT OF APPEALS
EIGHTH DISTRICT OF TEXAS
EL PASO, TEXAS

IN THE MATTER OF F. M. V., A JUVENILE,	§	No. 08-24-00077-CV
	§	Appeal from the
Appellant.	§	65th District Court
	§	of El Paso County, Texas
	§	(TC# 2100093)
	§	
	§	

O R D E R

The Court GRANTS Appellee's motion to vacate the May 22, 2025 oral argument setting.

Further, on the Court's own motion, and pursuant to Tex.R.App.P. 39.1, the Court finds that oral argument in the above styled and numbered cause is not necessary. Therefore, this case is scheduled to be submitted **without** oral argument on May 22, 2025.

IT IS SO ORDERED this 2nd day of May 2025.

PER CURIAM[1]

Before Salas Mendoza, C.J., Palafox and Soto, JJ.

[1] Pursuant to Texas Rule of Appellate Procedure 10.4(a), the motion or matter ruled on through this Order may have been decided by a single Justice sitting on the panel.

APPENDIX 3

FILED
NORMA FAVELA BARCELEAU
DISTRICT CLERK
2024 MAR 22 AM 10:42
EL PASO COUNTY, TEXAS
BY M. Ortega
DEPUTY

IN THE 65TH DISTRICT COURT
EL PASO COUNTY, TEXAS

IN THE MATTER OF:	§	
	§	
FERNANDO MANUEL VARELA	§	**NO. 2100093**
D.O.B. 1/28/2008	§	
	§	
A JUVENILE	§	

CHARGE OF THE COURT

MEMBERS OF THE JURY:

The juvenile, Fernando Manuel Varela, stands charged by determinate petition with five counts of Deadly Conduct Discharge Firearm, all to have been committed on or about the 22nd day of November 2022, in El Paso County, Texas. To each count, the juvenile has pleaded not delinquent.

OFFENSE

Our law provides that a person commits a **Deadly Conduct Discharge Firearm** if the person knowingly discharges a firearm at or in the direction of a habitation and is reckless as to whether the habitation is occupied.

Our law provides that a lesser included offense of Deadly Conduct Discharge Firearm is Deadly Conduct. A person commits the offense of **Deadly Conduct** if he recklessly engages in conduct that places another in imminent danger of serious bodily injury.

A person is **criminally responsible** for an offense committed by the conduct of another if acting with intent to promote or assist the commission of the offense, he solicits, encourages, directs, aids, or attempts to aid the other person to commit the offense or if, in the attempt to carry out a conspiracy to commit one felony, another felony is committed by one of the conspirators, all conspirators are delinquent of the felony actually committed, though having no intent to commit it, if the offense was committed in furtherance of the unlawful purpose and was one that should have been anticipated as a result of the carrying out of the conspiracy.

DEFINITIONS

A person acts **"knowingly",** with respect to a result of his conduct when he is aware that his conduct is reasonably certain to cause the result.

A person acts **"recklessly",** or is reckless, with respect to circumstances surrounding his conduct or the result of his conduct when he is aware of but consciously disregards a substantial and unjustifiable risk that the circumstances exist, or the result will occur.

A **"habitation"** means a structure that is adapted for the overnight accommodation of persons, it includes each separately secured or occupied portion of the structure and each structure appurtenant to or connected with the structure.

"Serious bodily injury" means bodily injury that creates a substantial risk of death or that causes death, serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.

"Conspiracy" means an agreement between two or more persons to commit a felony.

JURY INSTRUCTIONS

You shall consider only the evidence and exhibits presented here in the courtroom through the witnesses who have testified. If you want to have the exhibits with you in the jury room for your deliberations, advise the bailiff in writing. In deliberating on this case, you shall not talk to anyone except the members of the jury until you have been finally discharged from service on this jury.

The petition is a means by which a juvenile is brought to trial. The petition is not evidence of delinquency, and you shall not consider it in passing upon the question of whether the juvenile has engaged in delinquent conduct or has not engaged in delinquent conduct.

The burden of proof in all juvenile cases rests upon the State throughout the trial and does not shift to the juvenile. All juveniles are presumed to be innocent, and no juvenile may be found to have engaged in delinquent conduct unless each element of the offense is proved beyond a reasonable doubt. It is not required that the State prove delinquency beyond all doubt; it is required that the State's proof excludes all reasonable doubt.

The law does not require a juvenile to prove his innocence or produce any evidence at all. The presumption of innocence alone is sufficient to find that the juvenile did not engage in delinquent conduct, unless the jurors are satisfied beyond a reasonable doubt that the juvenile did engage in

delinquent conduct after careful and impartial consideration of all the evidence in the case. The fact that the juvenile has been detained, confined, or that a petition has been filed against him, or that he has otherwise been charged with an offense does not give rise to an inference that he has engaged in delinquent conduct.

Our law provides that a juvenile may testify on his own behalf if he elects to do so. This, however, is a privilege accorded the juvenile, and in the event, he elects not to testify, that fact cannot be taken as a circumstance against him.

If the state has not proven to you beyond a reasonable doubt that the juvenile's written statement was voluntary, you are not to consider it for any purpose, nor any evidence obtained as a result thereof. However, if the state has proven to you beyond a reasonable doubt that the juvenile's written statement was voluntary, it is to be considered in your deliberations.

You are the exclusive judges of the facts proved, of the credibility of the witnesses and the weight to be given to their testimony, but the law you shall receive in these written instructions, and you must be governed thereby.

You should give terms in their common meanings, unless you have been told in these instructions that the terms are given special meanings. In that course, you should give those terms the meanings provided in the instructions.

After you retire to the jury room, you must select one of your members as your Presiding Juror. It is his or her duty to preside at your deliberations, vote with that you, and when you have unanimously agreed upon a verdict, to certify your verdict by using the appropriate forms attached hereto and signing the same as Presiding Juror.

Count 1- Deadly Conduct Discharge Firearm

Now, if you find that the State failed to prove beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile NOT DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM A).

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then

and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM B).

Before you may find the juvenile delinquent of the lesser included offense, you must first find him not delinquent of Deadly Conduct Discharge Firearm.

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there recklessly engage in conduct that placed another in imminent danger of serious bodily injury, then you will find the juvenile DELINQUENT of Deadly Conduct (VERDICT FORM C).

Count 2 - Deadly Conduct Discharge Firearm

Now, if you find that the State failed to prove beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile NOT DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM D).

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM E).

Before you may find the juvenile delinquent of the lesser included offense, you must first find him not delinquent of Deadly Conduct Discharge Firearm.

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then

and there recklessly engage in conduct that placed another in imminent danger of serious bodily injury, then you will find the juvenile DELINQUENT of Deadly Conduct (VERDICT FORM F).

Count 3 - Deadly Conduct Discharge Firearm

Now, if you find that the State failed to prove beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile NOT DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM G).

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM H).

Before you may find the juvenile delinquent of the lesser included offense, you must first find him not delinquent of Deadly Conduct Discharge Firearm.

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there recklessly engage in conduct that placed another in imminent danger of serious bodily injury, then you will find the juvenile DELINQUENT of Deadly Conduct (VERDICT FORM I).

Count 4 - Deadly Conduct Discharge Firearm

Now, if you find that the State failed to prove beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile NOT DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM J).

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM K).

Before you may find the juvenile delinquent of the lesser included offense, you must first find him not delinquent of Deadly Conduct Discharge Firearm.

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there recklessly engage in conduct that placed another in imminent danger of serious bodily injury, then you will find the juvenile DELINQUENT of Deadly Conduct (VERDICT FORM L).

Count 5- Deadly Conduct Discharge Firearm

Now, if you find that the State failed to prove beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile NOT DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM M).

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there knowingly discharge a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied, then you will find the juvenile DELINQUENT of Deadly Conduct Discharge Firearm (VERDICT FORM N).

Before you may find the juvenile delinquent of the lesser included offense, you must first find him not delinquent of Deadly Conduct Discharge Firearm.

Now, if you find from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022, in El Paso County, Texas, the juvenile, Fernando Manuel Varela, did then and there recklessly engage in conduct that placed another in imminent danger of serious bodily injury, then you will find the juvenile DELINQUENT of Deadly Conduct (VERDICT FORM O).

Once you have reached your unanimous verdict, you shall notify the bailiff.

Concerning the manner of deliberations:

a. Do not let bias, prejudice, or sympathy play any role in deliberations.
b. In order to return a verdict, each juror must agree thereto.
c. Jurors have a duty to consult with one another to deliberate with a view to reaching an agreement if it can be done without violence to individual judgment.
d. Each juror must decide the case for himself, but only after an impartial consideration of the evidence with his fellow jurors.
e. In the course of deliberations, a juror should not hesitate to re-examine his own views and change his opinion if convinced it is erroneous.
f. No juror should surrender his honest conviction as to the weight or effect of the evidence solely because of the opinion of his fellow jurors, or for the mere purpose of returning a verdict.

SIGNED this 21st day of March 2024.

YAHARA LISA GUTIERREZ, JUDGE
65th DISTRICT COURT

APPENDIX 4

2025 WL 2146682
Only the Westlaw citation is currently available.

NOTICE: THIS OPINION HAS NOT BEEN RELEASED FOR PUBLICATION IN THE PERMANENT LAW REPORTS. UNTIL RELEASED, IT IS SUBJECT TO REVISION OR WITHDRAWAL.

Court of Appeals of Texas, El Paso.

In the MATTER OF F.M.V., a Juvenile.

No. 08-24-00077-CV
|
July 29, 2025

Synopsis

Background: Following denial of his motion to suppress the written statement he gave to police during a custodial interrogation, juvenile was adjudicated delinquent after a jury trial in the 65th District Court, El Paso County, Yahara Lisa Gutierrez, J., of five counts of deadly conduct discharge firearm and an appropriate disposition was determined to be a three-year determinate commitment to the Texas Juvenile Justice Department. Juvenile appealed.

Holdings: The Court of Appeals, Soto, J., held that:

law enforcement officers were present when juvenile signed his written statement during his meeting with magistrate on the street at the entrance of the jail facility, and thus, violated Juvenile Code provision requiring that juvenile's written statement be signed in presence of magistrate with no law enforcement officers or prosecuting attorney present, and

trial court's error in admitting juvenile's written statement implicating himself in shooting had a substantial and injurious effect on the jury's deliberations, as would warrant reversal of juvenile's delinquency adjudication.

Reversed and remanded.

Procedural Posture(s): Appellate Review; Juvenile Delinquency Proceeding.

Appeal from the 65th District Court Of El Paso County, Texas (TC# 2100093), The Honorable Yahara Lisa Gutierrez, Judge

Attorneys and Law Firms

Rene Vargas, Todd Morten, Kelli Childress, for Appellant.

Before Salas Mendoza, C.J., Palafox and Soto, JJ.

OPINION

LISA J. SOTO, Justice

***1** F.M.V., a juvenile, appeals from an order adjudging him delinquent of five counts of "deadly conduct discharge firearm" and committing him to the Texas Juvenile Justice Department. He contends the trial court erred in denying his motion to suppress a statement he made during custodial interrogation. The appeal turns on whether the State complied with § 51.095 (1)(B)(i) of the Family Code [1] in obtaining the statement. Based on the record before us, we conclude that the trial court erred in denying the motion to suppress based on the State's failure to comply with the Code. Because we find that the error in admitting the statement at trial was harmful, we reverse the trial court's judgment and remand for a new trial.

I. FACTUAL BACKGROUND

A. The police investigate a shooting in Canutillo, Texas

At F.M.V.'s trial, Leonardo Ramirez Torres (Leonardo) and his wife, Maria De Los Angeles Ramirez (Maria), testified that in the late afternoon of November 22, 2022, multiple shots were fired at their home in Canutillo while they were inside. The home was damaged and Leonardo was hit in the eye, causing permanent damage.

A deputy from the El Paso County Sheriff's Office arrived on the scene that same day and observed bullet casings outside the home as well as bullet holes in a BMW parked adjacent to the home. She observed damage to the residence as well as Leonardo's eye injury. A crime scene investigator arrived shortly thereafter and described the house as "riddled with gunshot fire" with over 30 casings of different calibers in the front of the residence. Some of the casings appeared to be from a rifle, while others appeared to be from a .45 caliber handgun. Detective Carlos Bastardo was also called to the scene and obtained surveillance footage from a nearby home showing a white Dodge Charger passing by the residence at the time of the shooting. [2]

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Leo, the Ramirezes' son, testified that he was not home at the time of the shooting but returned home shortly after his parents' friend called him about the incident. Leo told the deputies he suspected the shooting may have been prompted by an altercation at a nearby outlet mall with a group of individuals that included F.M.V. and another juvenile (J.O.). [3] According to Leo, he was with a group of friends when J.O. instigated a fight with him. Leo recalled punching J.O. in the face and F.M.V. attempting to punch him in the arm but "missed" and only "grazed" him. Leo testified that he pushed F.M.V. but did not punch him, given their past friendship. According to Leo, F.M.V. did not threaten him, but J.O. was being "threatening" and warned him, "wait here you're going to see what's going happen to you." Not wishing to continue the encounter, Leo called his mother to pick him up.

***2** Maria testified at trial that when she arrived at the mall, she observed a fight between her son and J.O., but F.M.V. was not involved. She recalled hearing J.O. threatening Leo, saying "I know where you live" and "he was going to go fuck [Leo] up."

Because the shooting occurred 30 minutes to two hours after the encounter at the outlet mall, the police identified F.M.V. and J.O. as suspects. That same evening, Bastardo unsuccessfully attempted to make contact with both of them at their families' homes. The next day, he spoke with J.O.'s brother, who informed him that an individual named "Andre" drove a white Dodge Charger. A DPS trooper initiated a traffic stop of the Dodge Charger that day and observed Andre in the back seat along with a .45 caliber handgun. Andre was not arrested at that time, but the sheriff's office placed his apartment under surveillance. While waiting to obtain a search warrant, they observed Andre leaving the apartment with two or three other individuals carrying a large trash bag. Shortly thereafter, another deputy pulled the car over a second time and observed Andre in the back seat along with the trash bag. A search of the bag revealed an AR15 rifle that had been broken in half, with .223 caliber bullets in the magazine matching the description of some of the casings found at the Ramirez home. Andre had two magazines sticking out of his sweater or hoodie pocket. His apartment was searched, and the deputies found a .45 caliber handgun matching the bullet casings at the Ramirez home. Andre was arrested on a charge of aggravated assault with a deadly weapon.

As part of his investigation, Bastardo spoke with a juvenile (A.S.) whom they believed was F.M.V.'s girlfriend after being informed that F.M.V. had sent texts and a video of the incident to her Instagram account. At trial, Bastardo testified that although the video was no longer available, A.S. described it to him when they met. However, when the State asked him to relate A.S.'s description of the video to the jury, defense counsel objected on hearsay grounds and the State withdrew the question.

A.S. was called as a witness at trial and initially testified that she did not recall receiving a video from F.M.V. However, A.S. later acknowledged receiving a video but claimed not to remember what it depicted. She testified that she did not recall telling the detectives about it. A.S. averred that she had no recollection of F.M.V. giving her any information about the shooting. The State then introduced a series of text messages between A.S. and F.M.V., which had been downloaded from her phone pursuant to a search warrant. In the text messages, A.S. stated that everyone at school was "talking about the shooting," and F.M.V. responded, "whenever ur free n I'm over ill lyk so we can link n tell *ya* everything in detail." F.M.V. also told her Andre had been arrested for aggravated assault with a deadly weapon, and he did not know if he would "snitch." In the texts, F.M.V. repeatedly told A.S. he did not want her to get "involved" and to "stay safe." He cautioned her to tell law enforcement they had not spoken recently.

B. F.M.V. is taken into custody and provides a written statement

F.M.V.'s mother, whom we identify as I.V., [4] testified at trial that F.M.V., who was 14 years old at the time, had left home on or about November 12, 2022, and that she reported him as a runaway on November 19. When F.M.V. returned home on November 28, 2023, she recalled contacting the sheriff's department to "end the runaway report" and was informed that they needed to speak with F.M.V. about the shooting. I.V. testified that Bastardo came to their residence to speak to F.M.V. the same day, but F.M.V. denied knowing anything about the shooting and denied knowing Andre. Bastardo also testified that F.M.V. denied any knowledge of the shooting but recalled that F.M.V. informed him of the altercation at the outlet mall, claiming he went with J.O. after the altercation to stay with J.O.'s grandmother at her house in El Paso.

***3** As discussed in more detail below, I.V. testified that F.M.V. had mental health issues and had a manic episode a day or two after his initial meeting with Bastardo, telling her that he was "mad" and wanted to "kill him." [5] She contacted Bastardo for help as she was "scared" and because

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she "assumed" from what F.M.V. was saying that he might have had something to do with the shooting.

C. F.M.V. is detained and provides a written statement

Bastardo testified that when he spoke with F.M.V.'s mother, she told him F.M.V. had given her "information" she wished to share. Based on that information, he and his partner (Detective Cesar Paredes) went to F.M.V.'s residence on December 1, 2022, to take F.M.V into custody and transport him to a juvenile processing center in Vinton, Texas (the Center).[6] According to Bastardo, F.M.V. was "calm" and "cooperative" at the time.

After warning F.M.V. of his rights and taking him to meet with a magistrate judge who reiterated his rights, F.M.V. provided Bastardo with a written statement.[7] F.M.V.'s statement reported that after the incident at the outlet mall, J.O. called his friend, Andre, who picked them up in a white Dodge Charger with another juvenile named Jonathan, both of whom were wearing black masks. According to the statement, Jonathan had a .45 caliber handgun and Andre had an AR rifle next to him. Andre asked F.M.V. for Leo's address, and although F.M.V. did not know the address, he agreed to show Andre where the house was. After pointing out the house, Andre and Jonathan got out of the car and began shooting. According to F.M.V., Andre shot first and "sprayed the house to include the windows," and Jonathan shot twice into a white BMW nearby.

F.M.V. stated that he and J.O stayed in the backseat of the car and admitted to recording the shooting on J.O.'s phone. After leaving the scene, the four went to Andre's house and remained there overnight. The next day, Andre informed them that they needed to leave as he believed the police were coming. F.M.V. reported that he then went to J.O.'s grandmother's house, and at some point, he sent the video of the shooting to his "girlfriend, [A.S.]." He reported that after he heard about Andre's arrest, J.O. "started panicking and started clearing his phone." F.M.V. later called his mother to pick him up, and his mother contacted Bastardo to let him know that F.M.V. was a "returned runway," which led to him speaking with the detective.

II. PROCEDURAL BACKGROUND

***4** On December 14, 2022, the State filed a determinant sentence petition against F.M.V. listing five counts of "delinquent conduct," each alleging that on November 22, 2022, he "knowingly discharge[d] a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied ... [and] use[d] and exhibit[ed] a deadly weapon, to wit: a firearm, during the commission of [the] offense."

A. F.M.V. moves to suppress his written statement

Prior to trial, F.M.V. moved to suppress the written statement he gave Bastardo on the grounds that (1) it was not made knowingly, voluntarily, and intelligently given F.M.V.'s mental health issues, and (2) the State did not follow the proper procedures under Texas Family Code § 51.095 as required before a juvenile's statement may be admitted at trial. The trial court held a hearing at which Bastardo, a jail magistrate, and I.V. testified. The trial court denied F.M.V.'s request to allow his expert witness to testify regarding his mental health issues.

B. The motion-to-suppress hearing

(1) Evidence regarding F.M.V.'s initial detention

F.M.V.'s initial detention that day was recorded on Bastardo's bodycam, which was introduced in evidence at the hearing, as well as at F.M.V.'s trial. On the video, F.M.V. is being handcuffed outside his residence and escorted to the street to wait for a patrol car to take him to the Center. I.V. acknowledged at the hearing that although F.M.V. suffered from mental health issues and what she believed was an ongoing manic episode beginning the day before his arrest, he appeared "pretty calm" on the video.[8] On the video, F.M.V. asked Bastardo and Parades whether he would be detained until his next court date and whether consensual fighting was legal in Texas. He also laughed at Bastardo's joke that handcuffs were not meant for "comfort," expressed that he is always "cooperative with cops," and told the detectives they could have spoken with him without arresting him. In response, Bastardo repeatedly informed F.M.V. that if he wished to speak with them, he would first need to meet with a magistrate judge to inform him of his rights.

Bastardo testified that after they transported F.M.V. to the Center, he indicated that he wished to provide a statement. Bastardo therefore read F.M.V. his rights from a standard waiver form used in juvenile cases, which included F.M.V.'s rights under *Miranda*, the Texas Code of Criminal Procedure,

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and the Texas Family Code.[9] The bodycam video of the detective reading F.M.V. his rights was played at the hearing and at trial. As reflected in the video, Bastardo testified that after he read F.M.V. his rights and asked F.M.V. if he understood what he had read to him, F.M.V. responded, "kind of."

***5** Parades, who was also in the interview room, then asked F.M.V. if he still wished to make a statement to tell them "what happened." After F.M.V. responded in the affirmative, Bastardo informed F.M.V. that he would be taken to meet with a magistrate judge who would explain his rights to him in more detail. Before leaving for the meeting, F.M.V. signed and dated the waiver form Bastardo had read to him, and Bastardo signed as a witness. Bastardo testified at the hearing that F.M.V. appeared to understand the procedure.

(2) Evidence regarding F.M.V.'s first interview with a magistrate

Bastardo testified that he took F.M.V. to meet with Judge Sarah Priddy, a jail magistrate in downtown El Paso, to read F.M.V. his rights. According to Bastardo, Judge Priddy's office was in the adult jail facility. Bastardo believed that because F.M.V. was a juvenile, he could not be taken into the facility due to the risk of psychological or physical harm by exposure to adult offenders.[10] Judge Priddy confirmed at the hearing that she also believed she was prohibited from taking juveniles into the jail facility due to concerns that a juvenile could be coerced if exposed to adult offenders. She noted that although there are private offices and courtrooms inside the facility, it does not have a designated juvenile processing office. Therefore, she met with F.M.V. on the street outside the jail to conduct the interview.

Judge Priddy did not recall their exact discussion. But she explained that her typical procedure is to go over the juvenile's rights and ask questions to make sure that they understand their rights, "just like a quiz, like a teacher would do." Judge Priddy stated that she makes sure the juvenile understands his right to terminate the interview and asks the juvenile questions to ensure he understands that he can stop the interview at any time. Judge Priddy testified that F.M.V. did not have "any trouble communicating with [her] in English," and she had no reason to believe F.M.V. did not understand his rights. However, she did not recall asking F.M.V. his age or whether he had any mental health issues or learning disabilities.

(3) Evidence regarding F.M.V.'s second meeting with the magistrate

After the meeting with Judge Priddy, Bastardo transported F.M.V. back to the Center, where he ascertained that F.M.V. still wanted to provide a statement. He typed the statement as F.M.V. verbally relayed it to him. Bastardo then allowed F.M.V. to read the statement, and after F.M.V. "approved" it, Bastardo had him sign it.[11]

Bastardo and Paredes, along with a patrol officer, transported F.M.V. back to downtown El Paso to meet with Judge Priddy so F.M.V. could sign the statement in her presence. This encounter also took place on the street at the entrance of the jail facility and was captured on the detectives' bodycams in two separate recordings. Both Bastardo and Judge Priddy testified that during Judge Priddy's second meeting with F.M.V., the officers who brought him were positioned on the street in F.M.V.'s sight but were far enough away that they could not overhear the conversation.

***6** Both bodycam videos were played at the hearing. The first video, from Paredes's bodycam, started at 15:18:16 on December 1, 2022, and shows Bastardo standing at the entrance to the jail facility providing Judge Priddy F.M.V.'s written statement. Shortly thereafter, the patrol officer, who is visibly armed, escorts F.M.V. to where Judge Priddy and Bastardo are standing and removes F.M.V.'s handcuffs. Bastardo then walks to one corner of the street, at a distance he estimated was approximately 30 feet away from Judge Priddy and F.M.V. At the same time, the patrol officer walks in the opposite direction to stand next to the patrol car with Parades, who is also visibly armed, at about the same distance from Judge Priddy and F.M.V. The video depicts a row of marked police cars along the street. At one point, a police officer who was not involved in F.M.V.'s case, but is also visibly armed, is seen taking something from the trunk of his patrol car and walking right past Judge Priddy and F.M.V. into the jail facility followed by a female in plain clothes.

Approximately two minutes into the video, Judge Priddy calls out to the detectives in a raised voice to ask them what time they read F.M.V. his rights. Bastardo then walks past Priddy and F.M.V. to speak with Paredes, and after apparently finding the paperwork with the time on it, walks back to where Judge Priddy and F.M.V. are standing to hand her the paperwork.

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For unknown reasons, Paredes's bodycam recording stops at this point, at 15:22:34, and Bastardo's bodycam recording begins less than two minutes later, at 15:24:09. At the start of this video recording, both detectives are standing near the patrol car along with the patrol officer. Judge Priddy calls them over at approximately 15:25:30 to inform them of a correction to the statement, and she directed F.M.V. to sign the corrected statement. After acknowledging the correction, Judge Priddy and Bastardo both sign the statement.

At the suppression hearing, Judge Priddy testified that in accordance with her standard procedure, during this encounter, she read F.M.V.'s statement silently to herself and believed F.M.V. read the statement to himself at the same time. She then asked F.M.V. if the statement reflected what he had told the detectives or if any part was incorrect. In response, F.M.V. denied telling the detectives that he had sent a video of the shooting to his girlfriend, so Priddy had him scratch that sentence out and initial it. After F.M.V. told Judge Priddy that everything else in the statement was correct, she had him sign the statement in her presence. Judge Priddy recalled what was reflected in the video footage: after she finished reviewing the statement with F.M.V., Judge Priddy waved over the detectives to explain to them that F.M.V. had scratched out the line in the statement. Judge Priddy then signed the statement and had Bastardo sign it as a witness. [12]

Judge Priddy testified at the hearing that during both of her interactions with F.M.V., she had no reason to believe that he did not "understand what was happening." She further testified that she had no fear of F.M.V. during their encounters and that she would not have required a bailiff to be present if she had met alone with him in a courtroom or office.

(4) The trial court's order denying the motion

***7** Following the hearing, the trial court denied F.M.V.'s motion to suppress his written statement and entered findings of fact and conclusions of law. In concluding that F.M.V. provided his statement voluntarily and knowingly and "understood the nature and context of his statement," the court considered his "age, appearance on video, ability to read and answer questions." The court found no evidence that F.M.V. "was coerced or unduly influenced to provide his statement."

The trial court also concluded that the statement was obtained in compliance with the Texas Family Code, finding that "[l]aw enforcement was not present during the examination and signing of [F.M.V.'s] statement"; the magistrate examined F.M.V. "independent from law enforcement"; "[t]he magistrate was fully convinced that [he] understood the nature and content of the statement[;] and that [he] knowingly, intelligently, and voluntarily waived his rights." Finally, the trial court found that "[t]he jail magistrate does not have a Juvenile Processing Center" where a juvenile interview could take place.

C. F.M.V. raises the issue of the voluntariness of his confession at trial

At trial, F.M.V. again raised the issue of whether his statement was made voluntarily and/or in compliance with the Texas Family Code. Relevant to that issue, F.M.V.'s mother, I.V., again testified about F.M.V.'s mental health issues and her belief that F.M.V. was having a manic episode at the time of his arrest. F.M.V. also presented the testimony of James Schutte, a licensed psychologist, who testified that he had evaluated F.M.V. and determined, based on testing, that his I.Q. was 84, which he explained was significantly below average and indicated a "diagnosis of borderline intellectual functioning." Schutte further determined that F.M.V. was reading at a fifth-grade level. Schutte opined that F.M.V. would not have been able to understand his rights by reading the waiver form, which was written at a twelfth-grade level, nor would he have been able to fully understand them as read to him, as reflected by his statement to Bastardo that he "kind of" understood them.

Schutte testified that he had viewed the videos of the magistrate's meeting with F.M.V. on the street outside the jail facility and found it "problematic" to conduct a meeting of this nature on the street, noting it was a busy street with a high level of noise, including passing sirens. Schutte opined that, particularly given F.M.V.'s "cognition level," he may not have understood the importance of waiving his rights and may have felt "pressure" to waive his rights in a hastened manner without fully understanding the significance of doing so. [13] Based on these factors, Schutte expressed his belief that F.M.V. did not knowingly and intelligently waive his rights prior to signing his statement.

At defense counsel's request, in its charge, the trial court instructed the jurors that they could not consider F.M.V.'s statement unless they determined that "the State [proved] beyond a reasonable doubt that the juvenile's written statement was voluntary." [14] F.M.V.'s attorney also sought an instruction that would have allowed the jury to disregard

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F.M.V.'s statement if the jury concluded that the statement was not taken in compliance with the Family Code. The State opposed the request, reasoning that the question of whether the statement was taken in compliance with the Family Code was a question of law to be resolved by the court, not a fact question to be resolved by the jury. Defense counsel countered that he believed a fact issue existed that the jury could resolve regarding whether the statement was taken in the "presence" of law enforcement and whether the officers present were armed. The trial court denied the instruction.

D. The jury charge and the parties' theories of the case

***8** In its charge, the court instructed the jurors on the elements of the offense of deadly conduct as to all five counts alleged in the petition. It instructed them that if they found "from the evidence beyond a reasonable doubt that on or about the 22nd day of November, 2022 [F.M.V.] knowingly discharge[d] a firearm at and in the direction of a habitation and was reckless as to whether the habitation was occupied," they will find him delinquent of "Deadly Conduct Discharge Firearm." [15] The trial court also instructed the jurors that if they found F.M.V. not delinquent of the charges as alleged, they could find him delinquent of the lesser-included offense of deadly conduct as to each count if they found that he "recklessly engage[d] in conduct that placed another in imminent danger of serious bodily injury." [16]

In addition, the trial court instructed the jury on the "law of the parties," providing:

> A person is criminally responsible for an offense committed by the conduct of another if acting with intent to promote or assist the commission of the offense, he solicits, encourages, directs, aids, or attempts to aid the other person to commit the offense or if, in the attempt to carry out a conspiracy to commit one felony, another felony is committed by one of the conspirators, all conspirators are delinquent of the felony actually committed, though having no intent to commit it, if the offense was committed in furtherance of the unlawful purpose and was one that should have been anticipated as a result of the carrying out of the conspiracy. [17]

In closing, the prosecutor acknowledged there was no evidence in the record that F.M.V. was the shooter. However, she argued there was sufficient evidence from which the jury could find F.M.V. delinquent of the alleged charges based on the doctrine of law of the parties. In support, the prosecutor emphasized that F.M.V.'s statement—which she argued was voluntary and therefore could be considered by the jury in determining F.M.V.'s role in the shooting—provided clear evidence that F.M.V. intentionally aided and abetted the shooting by directing the driver to Leo's home.

Defense counsel, however, maintained that the jury should not consider F.M.V.'s statement in its deliberations, as it was not voluntarily made and/or was not made in compliance with the Family Code. Defense counsel further argued that, even considering the statement, there was no evidence that F.M.V. instigated the shooting or that he intentionally aided and abetted in the offense. He contended that Andre, who was several years older, had essentially compelled F.M.V. to get into the vehicle and direct him to Leo's house. Counsel concluded by urging the jury to find F.M.V. not delinquent with respect to all five charged offenses, or in the alternative, find F.M.V. only delinquent of the lesser-included offenses of deadly conduct.

E. The jury's verdict and the trial court's order of commitment

***9** The jury found F.M.V. delinquent of "Deadly Conduct Discharge Firearm" on all five counts. In its Order of Commitment, the trial court found F.M.V. "in need of rehabilitation and or the protection of the public or [F.M.V.] requires that a disposition be made." It found that the appropriate disposition was a three-year "determinate commitment to the Texas Juvenile Justice Department." This appeal ensued.

III. ISSUES ON APPEAL

On appeal, F.M.V. first contends the trial court abused its discretion by denying the motion to suppress his written statement on the grounds that (1) the statement was not

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made voluntarily and knowingly, and (2) it was not made in compliance with the Texas Family Code. Second, he argues the trial court erred by not providing the jury with an instruction allowing it to determine whether F.M.V.'s statement was admissible under the Texas Family Code. Third, F.M.V. maintains the trial court abused its discretion by refusing to allow his expert witness to testify at the suppression hearing. Because we find that the statement was not made in compliance with the Texas Family Code and conclude that the trial court erred in admitting the statement at trial, we address only this issue as it is dispositive of the appeal. [18]

IV. THE TRIAL COURT'S DENIAL OF THE MOTION TO SUPPRESS

A. Standard of review

When reviewing a trial court's ruling on a motion to suppress, we apply a bifurcated standard of review. *Ochoa v. State*, 707 S.W.3d 344, 360 (Tex. Crim. App. 2024) (citing *State v. Martinez*, 570 S.W.3d 278, 281 (Tex. Crim. App. 2019)). "We defer almost totally to a trial court's determinations of historical fact, so long as such determinations are supported by the record, as well as to its rulings on mixed questions of law and fact that hinge on credibility and demeanor." *Id.* However, we "review *de novo* the trial court's rulings on pure questions of law or mixed questions of law and fact that do not hinge on credibility or demeanor." *Id.* (citing *State v. Espinosa*, 666 S.W.3d 659, 667 (Tex. Crim. App. 2023)). "The evidence and all reasonable inferences are viewed in the light most favorable to the trial court's ruling, and the trial court's ruling must be upheld if it is reasonably supported by the record and is correct under a theory of law applicable to the case." *Id.*

B. Applicable law

Because F.M.V. was a juvenile at the time of his arrest, the Texas Family Code governs the admissibility of his written statement. *See Roquemore v. State*, 60 S.W.3d 862, 866 (Tex. Crim. App. 2001) (en banc) (citing *Comer v. State*, 776 S.W.2d 191, 196 (Tex. Crim. App. 1989) (holding that issues involving the substantive rights of pre-transfer juveniles are governed by the Family Code)). Once a juvenile raises the issue of noncompliance with the Family Code's requirements in the trial court, the burden shifts to the State to demonstrate its compliance. *See In re J.B.J.*, 86 S.W.3d 810, 813 (Tex. App.—Beaumont 2002, no pet.) (citing *Hill v. State*, 78 S.W.3d 374, 382–83 (Tex. App.—Tyler 2001, pet. ref'd); *In re C.R.*, 995 S.W.2d 778, 783 (Tex. App.—Austin 1999, pet. denied)). Here, F.M.V. raised the issue of whether the State complied with Texas Family Code § 51.095, and therefore, the issue before us is whether the State met its burden of demonstrating its compliance with that provision.

***10** Section 51.095 requires a two-step process before a juvenile's written statement may be admitted in evidence. The first step is to ensure that the juvenile received his warnings from a magistrate prior to making the statement. Tex. Fam. Code Ann. § 51.095(1). The Code provides no requirement that this first step must be done outside the presence of law enforcement; thus, the Texas Criminal Court of Appeals has held that the magistrate may read the warnings to a juvenile with law enforcement present. *See Herring v. State*, 395 S.W.3d 161 (Tex. Crim. App. 2013) (recognizing that although the second step may not take place in the presence of law enforcement, "by omitting such a prohibition in Subsection 51.095 (a)(1)(A), the legislature expressed an intent that such a prohibition should not apply to the reading of the statutory warning"). In contrast, the second step expressly requires that the juvenile's written statement be "signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present, except that a magistrate may require a bailiff or a law enforcement officer if the magistrate determines that the presence of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the presence of the child." [19] Tex. Fam. Code Ann. § 51.095 (1)(B)(i).

As our sister court has recognized, these provisions of the Family Code are designed "to ensure that children are fully informed and not influenced into waiving their rights" when being subjected to custodial investigations. *See Matter of B.B.*, 567 S.W.3d 786, 790 (Tex. App.—San Antonio 2018, no. pet). In other words, the Family Code procedures provide a "protective check" on law enforcement to ensure that a juvenile is not unduly influenced by law enforcement and the juvenile's statement is given voluntarily. *Id.* As the Court of Criminal Appeals has observed, in juvenile cases, "the greatest care must be taken to assure that the admission was voluntary, in the sense not only that it was not coerced or suggested, but also that it was not the product of ignorance of rights or of adolescent fantasy, fright or despair." *Ochoa*, 707 S.W.3d at 362.

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For this reason, "[p]olice officers, courts, and others involved in handling juveniles 'are bound to comply with the detailed and explicit procedures' enacted by the Texas legislature and set out in the Family Code." *Contreras v. State*, 67 S.W.3d 181, 184 (Tex. Crim. App. 2001).[20] The Court of Criminal Appeals has therefore "established a policy of strict compliance with the Family Code provisions" in juvenile prosecutions and has recognized that a statement made by a juvenile is inadmissible if the Family Code requirements were not followed. *See Roquemore*, 60 S.W.3d at 868 (citing *Comer*, 776 S.W.2d at 195–96) (holding a juvenile's statement inadmissible for violations of the Family Code).[21] Accordingly, evidence obtained in violation of the applicable Family Code provisions must be suppressed. *Comer*, 776 S.W.2d at 196 (holding that juvenile's statement was inadmissible due to the failure to follow Family Code § 52.02(a)); *Jeffley v. State*, 38 S.W.3d 847, 858 (Tex. App.—Houston [14th Dist.] 2001, pet. ref'd) (holding that a statement obtained in violation of Family Code § 51.095 was inadmissible at trial).[22]

C. Analysis

***11** F.M.V. maintains the State did not meet its burden of establishing that the requirements of Family Code § 51.095 were met, as the record reflects that when he signed his statement during his meeting with the magistrate, law enforcement officers were present, some of whom were armed, without any showing that their presence was necessary for the magistrate's personal safety. We agree.

In reaching this conclusion, we first note, as the parties do, that the Code does not define the term "present." And the parties have not cited any cases examining the Legislature's intent in using the term "present" in the Code, nor have we found any. We must therefore construe the meaning of the term, and we do so as "a pure question of law." *State v. Torres*, 666 S.W.3d 735, 741 (Tex. Crim. App. 2023) (recognizing that "[s]tatutory construction is a pure question of law") (citing *Ramos v. State*, 303 S.W.3d 302, 306 (Tex. Crim. App. 2009)).

The State appears to be advocating that we construe the term "present" as used in the Code to only include situations in which law enforcement officers were close enough to overhear the magistrate's conversation with the juvenile. According to the State, the Family Code's requirement that the juvenile's meeting with the magistrate take place outside the presence of law enforcement is "to ensure that a juvenile has a neutral examination by the magistrate," and that the juvenile is "not unduly influenced by law enforcement."[23] In turn, the State maintains this purpose is fulfilled by ensuring that law enforcement officers are not "a party to the conversation or examination between a juvenile and a magistrate." And the State points out that the conversation between F.M.V. and Judge Priddy was "private" in that sense, and that the purposes of the Family Code were thereby fulfilled.

***12** F.M.V., on the other hand, contends the Legislature's use of the term "present" contemplates that—at least in situations in which there the magistrate does not have a fear for her personal safety—law enforcement officers may not be in "sight of" or in visual range of a juvenile when the magistrate is reviewing his statement.

In determining the plain meaning of a statutory term that is not defined and has not acquired a "technical meaning to which we must defer," we may look to standard dictionary definitions. *Torres*, 666 S.W.3d at 742 (citing *Ramos*, 303 S.W.3d at 307). And in defining the term, we must not view it in isolation, but rather in the context of the entire Code provision at issue. *Id.* at 743 (citing Antonin Scalia & Bryan A. Garner, READING LAW: THE INTERPRETATION OF LEGAL TEXTS (2012), at 167; *Smith v. United States*, 508 U.S. 223, 229, 113 S.Ct. 2050, 124 L.Ed.2d 138 (1993) ("Language, of course, cannot be interpreted apart from context. The meaning of a word that appears ambiguous if viewed in isolation may become clear when the word is analyzed in light of the terms that surround it.")); *see also Thomas v. State*, 919 S.W.2d 427, 430 (Tex. Crim. App. 1996) (en banc) ("We always strive to give words and phrases meaning within the context of the larger provision."); *Nguyen v. State*, 1 S.W.3d 694, 696 (Tex. Crim. App. 1999) (recognizing that "[t]he context of the entire organized crime statute gives clues to the meaning of undefined words"). "Interpreting words in context becomes even more critical when construing words with wide-ranging meanings." *Torres*, 666 S.W.3d at 743 (recognizing that the word "uses" poses difficulty in interpreting it because of the "different meanings attributable to it" and the "elastic" nature of the term itself).

The term "present" is defined by the Meriam-Webster Dictionary as "being in view or at hand." PRESENT Definition & Meaning - Merriam-Webster; *see also Smith v. State*, 200 S.W.3d 644, 648 (Tex. App.—Houston [1st Dist.] 2001, pet. ref'd) (where public lewdness statute did not define term "present," court looked to the dictionary definition of the term, as being "in view or at hand")

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(citing Webster's New Collegiate Dictionary 903 (1981)). In turn, Merriam-Webster provides synonyms for the term, "at hand," as follows: "not being distant in time, space, or significance" and "being within the confines of a specified place." AT HAND Synonyms: 128 Similar and Opposite Words | Merriam-Webster Thesaurus. As well, the Cambridge Dictionary defines the term as being "in a particular place." PRESENT | English meaning–Cambridge Dictionary. The definition of the term "present" as being "in view" comports with a reading of § 51.095 as a whole and its purpose. *See Shipp v. State*, 331 S.W.3d 433, 437–38 (Tex. Crim. App. 2011) (recognizing that the meaning of a term in statute may be determined by "the context of the statute as a whole [and] by a consideration of its purpose").

As set forth above, § 51.095 does not allow law enforcement to be present when the magistrate has not expressed a fear for her personal safety, but does allow an *unarmed* bailiff or a law enforcement officer to be present when the magistrate expresses a safety concern for herself or court personnel. Tex. Fam. Code Ann. § 51.095 (1)(B)(i) (emphasis added). While a courtroom or other confined space in a courthouse is not the only place a magistrate is permitted to meet with a juvenile in this context, the Legislature's reference to a "bailiff" and "court personnel" intimates that the magistrate would likely meet with a potentially dangerous juvenile within a courthouse. We find it significant that the Legislature contemplated that the meeting could take place in a closed setting, such as a courtroom, which in turn, would suggest that it could be conducted within earshot of an unarmed bailiff or law enforcement officer. This tells us that the Legislature was not simply concerned with avoiding situations in which a law enforcement officer might overhear a conversation between a magistrate and a juvenile, but was instead concerned with creating a procedure that would ensure that a juvenile—even a potentially dangerous one—did not feel intimidated or coerced when waiving his rights and when providing a statement in response to custodial interrogation. *Matter of B.B.*, 567 S.W.3d at 790 (citing *Ramos v. State*, 961 S.W.2d 637, 639 (Tex. App.—San Antonio 1998, no pet.) (recognizing that "the obvious concern of the Family Code provision is to ensure that children are fully informed and not influenced into waiving their rights when they are being interviewed by officers")). In other words, the Legislature created the "detailed and explicit procedures" set forth in § 51.095 to place a "protective check" on law enforcement in juvenile cases and strike a balance between public safety concerns and the child's welfare. *See id.*; *see also Roquemore*, 60 S.W.3d at 872 (recognizing that the juvenile provisions in the Family Code "seek[ ] to strike a balance between the competing interests of public safety and child welfare"). We therefore conclude that in a case such as this where the magistrate has expressed no fear of the juvenile, the Legislature intended that the magistrate review the juvenile's statement outside the visual presence of law enforcement to avoid the juvenile being subjected to any feelings of intimidation or coercion from such presence.

***13** The State, however, contends that any rule requiring law enforcement to be outside the visual range of the juvenile when meeting with a magistrate would be unworkable, pointing out that such a meeting is only required when the juvenile is "in custody" or is otherwise being detained by law enforcement. *See* Tex. Fam. Code Ann. § 51.095(d)(2) (providing that subsections (a)(1) and (a)(5) only apply to the statement of a child made "while the child is in the custody of an officer" or while the child is otherwise detained or in the possession of the Texas Department of Family and Protective Services); *see also Roquemore*, 60 S.W.3d at 866 (recognizing that a statement which is not the product of custodial interrogation is not subject to the requirements of Family Code § 51.095). In turn, the State reasons that law enforcement must necessarily be somewhere in the vicinity when an interview takes place and "[s]ince the El Paso Jail Magistrates Office does not have a designated Juvenile Processing Office," they have implemented a procedure of conducting interviews with juveniles on the street with law enforcement officers stationed at a distance close enough to ensure public safety but far enough away to ensure that "the intended safeguards [of the Code] are enforced." The gist of the State's argument is that Judge Priddy had no choice but to conduct the interview with F.M.V. in the manner that she did.

As a preliminary matter, we find no requirement that the magistrate must review the juvenile's statement in a juvenile processing office. The Code provides that a county's juvenile board "*may* designate an office or a room, which may be located in a police facility or sheriff's offices, as the juvenile processing office for the temporary detention of a child taken into custody under Section 52.01."[24] Tex. Fam. Code Ann. § 52.025(a). And it further provides that a juvenile may only be "detained" in a designated juvenile processing office for certain limited purposes, including for purposes of "the receipt of a statement by the child under Section 51.095(a)(1), (2), (3), or (5)." But the Code does not expressly state that a meeting with the magistrate to review a juvenile's statement may only take place in a designated juvenile processing office. Tex. Fam. Code Ann. § 52.025. The State has not

cited any authority that would prohibit a magistrate from conducting an interview with a juvenile in an area that is not a designated juvenile processing office.

Moreover, while the record reflects the State's concern about finding a location within an adult jail facility where a magistrate could meet with a juvenile without exposing him to adult offenders, the Code expressly allows temporarily detaining a juvenile in a designated area of an adult jail facility if the juvenile is separated from the adults; as the Court of Criminal Appeals has recognized, this separation avoids the possibility that the juvenile might be influenced or victimized by adult offenders. *See Vega v. State*, 84 S.W.3d 613, 618 (Tex. Crim. App. 2002) (en banc) (finding no Code violation where juvenile was temporarily detained in an interrogation room in an adult jail facility, where "[s]he was at all times kept separate from adult offenders") (citing Tex. Fam. Code Ann. § 51.12 (f) ("A child detained in a building that contains a jail, lockup, or other place of secure confinement, including an alcohol or other drug treatment facility, shall be separated by sight and sound from adults detained in the same building.")). Various courtrooms and offices in the jail facility arguably could have provided such separation, but no one provided an explanation as to why one of those areas was not utilized to conduct F.M.V.'s interview.

By no means do we suggest that there is only one way to promote the safeguards inherent in the Family Code. We heed the State's caution against adopting a rule that requires a "rigid separation of the magistrate, juvenile, and officers." But here, we find no need to adopt a hard-and-fast rule that would limit the locations where an interview may take place or provide an exact description of where a law enforcement officer may be positioned during such an interview, as the record in this case clearly reflects that the that the requirements of the Code were not met under the unique facts of this case.

***14** Specifically, the bodycam footage reveals that throughout F.M.V.'s meeting with the magistrate, there was a police presence in the immediate area, all within F.M.V.'s visual range, including armed officers. At the start of the meeting, the three armed law enforcement officers involved in his case were standing on both sides of the sidewalk in F.M.V.'s view, and other armed police officers were in the immediate vicinity and in fact walked right past F.M.V. and the magistrate, which appears to have distracted F.M.V. during the meeting as he turned his head in their direction. In addition, Bastardo walked directly past Judge Priddy and F.M.V. on two separate occasions during the middle of the meeting to retrieve paperwork.

The fact that the officers were in F.M.V.'s view throughout the proceeding—and at times in his immediate presence—demonstrates an undeniable police presence. The fact that the officers were armed makes this scenario all the more unacceptable under the Code. Even if Judge Priddy had expressed a safety concern, which she denied having, the Code expressly forbids an officer from carrying a firearm when present at the time of a juvenile's meeting with a magistrate to review his statement. Tex. Fam. Code Ann. § 51.095 (1)(B)(i). Accordingly, under the circumstances of this particular case, we cannot say that the meeting took place with no law enforcement officers present as required by the Code.

In its final argument, the State contends that even if we find that the meeting did not take place outside the presence of law enforcement, we should nevertheless find F.M.V.'s statement admissible. In taking this position, the State maintains that F.M.V. did not feel any actual coercion or undue influence during his meeting with Judge Priddy, as reflected by his feeling "comfortable enough" to tell her that he did not tell the detectives he had sent the video of the shooting to his girlfriend. In other words, the State appears to be suggesting that the record must reflect a subjective feeling of coercion or undue influence on the part of the juvenile before his statement should be deemed inadmissible and that this record in fact shows no feeling of coercion or undue influence.[25] But the State has not cited any authority for that proposition.[26] Nothing in § 51.095 leads us to believe there must be a finding that the juvenile subjectively felt coerced or unduly influenced during his meeting with the magistrate to find his statement inadmissible. To the contrary, § 51.095 expressly provides that a written statement is only admissible if it was "signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present." Tex. Fam. Code Ann. § 51.095 (1)(B)(i). Unlike various other provisions in the Family Code governing juvenile proceedings, the Texas Court of Criminal Appeals has emphasized that § 51.095 is an "independent exclusionary statute" that requires the exclusion of a statement not taken in compliance with its requirements. *See Gonzales v. State*, 67 S.W.3d 910, 912 (Tex. Crim. App. 2002); *Torres*, 666 S.W.3d at 747 (holding that juvenile's recorded statement was inadmissible where, in violation of § 51.095(f) of the Code, magistrate was not permitted to review juvenile's recorded statement to determine whether it was made voluntarily); *see also In re J.T.M.*, 441 S.W.3d 455, 464 (Tex. App.—El

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Paso 2014, no pet.) (holding that juvenile's statement was inadmissible where it was taken without admonitions from magistrate in violation of § 51.095).

***15** Because we have found that F.M.V. did not sign his statement outside the presence of law enforcement as required by the Code, we conclude the trial court erred in denying his motion to suppress the statement and by allowing its admission at trial.

V. WAS F.M.V. HARMED BY THE ADMISSION OF THE STATEMENT?

Although neither party has provided a harm analysis in their briefing, we must nevertheless determine whether the trial court's error in admitting the statement at trial was harmful to F.M.V.'s case. *See Roquemore*, 60 S.W.3d at 867–68 (remanding to the court of appeals to conduct a harm analysis after finding that a juvenile's statement was improperly admitted in violation of the Family Code).

In conducting a harm analysis, our first task is to determine which harm standard to apply. Rule 44.2 provides that [i]f the "appellate record in a criminal case reveals constitutional error that is subject to harmless error review, the court of appeals must reverse a judgment of conviction or punishment unless the court determines beyond a reasonable doubt that the error did not contribute to the conviction or punishment."[27] Tex. R. App. P. 44.2(a). But "[a]ny other error, defect, irregularity, or variance that does not affect substantial rights must be disregarded." Tex. R. App. P. 44.2(b).

We find some conflict in the law regarding what standard to apply in determining whether the erroneous admission of a juvenile's statement in violation of the Family Code harmed the juvenile's case. Some of our sister courts have applied the standard for constitutional error, observing that "the improper admission of a statement in response to custodial interrogation implicates the constitutional right against self-incrimination." *See Marsh v. State*, 140 S.W.3d 901, 908 (Tex. App.—Houston [14th Dist.] 2004, pet. ref'd) (finding juvenile's constitutional right against self-incrimination was implicated where law enforcement did not follow proper procedures in notifying juvenile's parents prior to interrogating him as required by the Family Code) (citing *Jeffley*, 38 S.W.3d at 858 (applying constitutional harm analysis where the juvenile made two oral statements without receiving adequate warnings from a magistrate in violation of the Family Code)); *see also In re D.J.C.*, 312 S.W.3d at 721–22 (applying the constitutional standard for harm where the trial court erroneously admitted a juvenile's statement in violation of the Family Code by failing to take the juvenile to a designated juvenile processing center, excluding the juvenile's legal guardian for the interview, and failing to provide the juvenile with adequate warnings prior to the interview).

***16** Other courts have applied the standard for non-constitutional error in determining whether a juvenile was harmed by the erroneous admission of a statement obtained in violation of the Family Code's requirements, where the violation only amounted to a statutory violation, rather than one of a constitutional magnitude. *See Roquemore v. State*, 95 S.W.3d 315, 316 (Tex.App.-Hous. 2002) (applying Rule 44.2(b) in determining whether juvenile was harmed by the trial court's erroneous admission of his statement that was obtained in violation of the Family Code's requirement that a juvenile be taken to a designated juvenile processing center); *see also Sandoval v. State*, 665 S.W.3d 496, 515 (Tex. Crim. App. 2022) (distinguishing between situations in which a statement was admitted in violation of a defendant's constitutional rights and situations in which it was "found to be admitted only in violation of a statute [where] the harm analysis for non-constitutional errors applies").

In the case before us, we need not decide which standard should be applied as we find that admitting the statement was harmful even under the lesser Rule 44.2(b) standard for non-constitutional error. *In re C. R.*, 995 S.W.2d at 786–87 (court declined to whether the violation of Family Code § 52.02(b) constituted constitutional error because, even assuming the error was non-constitutional, court found admission of the statement affected the juvenile's substantial rights and thus could not be deemed harmless).

Under the harm standard for non-constitutional error, an error is reversible only when it has "a substantial and injurious effect or influence in determine the jury's verdict." *Gonzalez v. State*, 544 S.W.3d 363, 373 (Tex. Crim. App. 2018). "If we have a fair assurance from an examination of the record as a whole that the error did not influence the jury, or had but a slight effect, we will not overturn the conviction." *Id.* "In making this determination, we consider: (1) the character of the alleged error and how it might be considered in connection with other evidence; (2) the nature of the evidence supporting the verdict; (3) the existence and degree

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of additional evidence indicating guilt; and (4) whether the State emphasized the complained of error." *Id.* Here, all four factors point to a finding of harm.

In assessing the character of an error in wrongfully admitting a confession, the Court of Criminal Appeals has recognized that the erroneous admission of a defendant's statement in which he implicates himself in the commission of the charged offense "is unlike any other evidence that can be admitted against the defendant." *McCarthy v. State*, 65 S.W.3d 47, 55–56 (Tex. Crim. App. 2001). The Court of Criminal Appeals quoted the United States Supreme Court's opinion in *Fulminante* on this point:

> [A] defendant's own confession is probably the most probative and damaging evidence that can be admitted against him .... [T]he admissions of a defendant come from the actor himself, the most knowledgeable and unimpeachable source of information about his past conduct. Certainly, confessions have profound impact on the jury, so much so that we may justifiably doubt its ability to put them out of mind even if told to do so.

Id. at 56 (quoting *Arizona v. Fulminante*, 499 U.S. 279, 296, 111 S.Ct. 1246, 113 L.Ed.2d 302 (1991)).

F.M.V.'s statement implicating himself in the offense not only would have had a profound impact on the jury, but it was the only direct evidence presented by the State to show he had an active role in the offense. In closing argument, the prosecutor repeatedly emphasized F.M.V.'s statement, arguing it was clear evidence of his role in the offense. *Id.* at 52–55 (finding it significant that the prosecutor repeatedly emphasized erroneously admitted statement throughout the defendant's trial); *In re M.G.*, No. 10-09-00037-CV, 2010 WL 3292711, at *6 (Tex. App.—Waco Aug. 11, 2010, no pet.) (mem. op., not designated for publication) (holding that State's emphasis on juvenile's erroneously admitted videotaped confession during closing argument was a significant factor in finding harm).

***17** Accordingly, after viewing the record as a whole, we do not have fair assurance that the error did not influence the jury or that its effect was but slight. Instead, we conclude that the erroneous admission of F.M.V.'s statement had a substantial and injurious effect on the jury's deliberations. *See In re C. R.*, 995 S.W.2d at 786–87 (after reviewing the record and considering the "potentially dramatic effect of a written confession on the decision-making process of a jury," court did not have fair assurance that the erroneous admission of the confession "did not influence the jury, or had but a slight effect").

VI. CONCLUSION

We reverse the trial court's judgment and remand for a new trial.

All Citations

--- S.W.3d ----, 2025 WL 2146682

Footnotes

1 Section 51.095 (1)(B)(i) expressly requires the juvenile's written statement to be "signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present, except that a magistrate may require a bailiff or a law enforcement officer if a bailiff is not available to be present if the magistrate determines that the presence of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the presence of the child." Tex. Fam. Code Ann. § 51.095 (1)(B)(i).

2 Maria also testified that she observed a white car driving away from the scene after the shooting stopped.

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3 Leo explained that he was acquainted with J.O. and that although he and F.M.V. had previously been "good friends," their relationship had changed recently and they no longer spoke.

4 The Texas Family Code provides that "[n]either the child nor his family shall be identified in an appellate opinion." Tex. Fam. Code Ann. § 56.01(j).

5 It is unclear from the record to whom F.M.V. was referring.

6 As discussed in more detail below, the Texas Family Code provides, with limited exceptions, that a juvenile must be taken to a "juvenile processing office" designated under § 52.025 of the Code for purposes of obtaining a statement from the juvenile. Tex. Fam. Code Ann. §§ 52.02; 52.025. There is no dispute that the Center was a designated processing office within the meaning of the Code.

7 The statement itself was prefaced with a document entitled, "Voluntary Statement of Child," in which F.M.V. stated that he had been advised of his rights by both the magistrate and Bastardo, i.e., "I fully understand each of these rights, including my right to consult with an attorney prior to and during the making of this statement, and I freely and voluntarily waive my right to consult with an attorney prior to the making of this statement and my right to remain silent."

8 At the hearing, I.V. testified that F.M.V. had been diagnosed with "bipolar disorder, major depressive disorder [and] ADHD." Although she did not know his reading level, she acknowledged that he "understands and reads and writes English," even though I.V. primarily spoke Spanish in the home. She further testified that when F.M.V. was nine years old, he had been involved in a bike accident that caused a traumatic brain injury, after which he began having seizures and manic episodes. I.V. observed that when F.M.V. is in a manic state, he doesn't sleep, "he can't stay still," and he becomes "aggressive." According to I.V., the day before F.M.V. was arrested, he was having a manic episode, was not "making sense," and was "homicidal."

9 The rights set forth in the form included the right to remain silent and a warning that any statement made would be used in evidence against him; the right to an attorney, including the right to an appointed attorney in the case of indigency; the right to terminate the interview at any time; a warning that a juvenile 14 years or older could be tried as an adult for certain specified offenses not at issue herein; and a lengthy explanation of certain sentencing guidelines in the event the juvenile was found to be an habitual offender. The form concluded with the following: "All the rights that have been explained to you are continuing rights which can be used by you at any time." The form was signed and dated by F.M.V., whose signature was witnessed by Bastardo.

10 Bastardo acknowledged that the streets outside the facility are busy, with "cars whizzing by" and "[o]ther adults including law enforcement officers, pass[ing] by all the time."

11 We note that although the correct protocol is to have the statement signed in the presence of the magistrate rather than in the presence of law enforcement, courts have recognized that any error in having the juvenile sign prematurely is "made irrelevant" or "cured" when the magistrate reviews the statement with the juvenile and has him re-sign it. *See, e.g., In re J.M.S.*, No. 06-04-00008-CV, 2004 WL 1968644, at *2 (Tex. App.—Texarkana Sept. 8, 2004, no pet.) (mem. op., not designated for publication).

12 Judge Priddy also signed a document entitled, "Magistrate's Certification of Juvenile's Competency to Make Statement," stating that F.M.V. had appeared before her "for the purpose of signing in [her] presence [his statement] with no law enforcement or prosecuting attorney present." In the certification, Judge Priddy attested that she had "examined [F.M.V.] independent of any law enforcement officer or prosecuting attorney, and ... determined that [he] understands the nature and contents of his/ her statement and has knowingly, intelligently and voluntarily waived the rights specified in part one of this document." Finally, she attested

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that she was "fully convinced that [F.M.V.] understands the nature and contents of his/her statement and has signed every page of this statement voluntarily."

13 Schutte also testified at trial, without elaboration, that F.M.V. had informed him that he felt "tricked" into giving his statement.

14 The full text of the instruction as submitted by defense counsel read: "If the state has not proven to you beyond a reasonable doubt that the juvenile's written statement was voluntary, you are not to consider it for any purpose, nor any evidence obtained as a result thereof. However, if the state has proven to you beyond a reasonable doubt that the juvenile's written statement was voluntary, it is to be considered in your deliberations."

15 Section 22.05(b) of the Penal Code provides: "A person commits an offense if he knowingly discharges a firearm at or in the direction of: (1) one or more individuals; or (2) a habitation, building, or vehicle and is reckless as to whether the habitation, building, or vehicle is occupied." *Id.* 22.05(b). An offense under subsection (b) is a felony of the third degree. Tex. Pen. Code Ann. § 22.05(e).

16 Section 22.05(a) of the Penal Code, labeled "Deadly Conduct," provides: "A person commits an offense if he recklessly engages in conduct that places another in imminent danger of serious bodily injury." *Id.* 22.05(a). An offense under that subjection is a Class A misdemeanor. *Id.* 22.05(e).

17 Tex. Penal Code Ann. § 7.01 (a); *see also* *Welchman v. State*, No. 08-02-00193-CR, 2003 WL 22413638, at *6 (Tex. App.—El Paso Oct. 23, 2003, no pet.) (mem. op., not designated for publication) (citing Tex. Pen. Code Ann. § 7.01(a)(2)). To establish this theory of liability, the State must prove the illegal conduct of the primary actor and that the accused acted with the intent to promote or assist the commission of the offense. *Id.* (citing *Stroman v. State*, 69 S.W.3d 325, 329 (Tex. App.—Texarkana 2002, pet. ref'd)). In determining whether a defendant is a party to an offense, the court may examine the events occurring before, during, or after the offense is committed and may rely on the defendant's actions showing an understanding and common design to commit the offense. *Id.* (citing *Marable v. State*, 85 S.W.3d 287, 293 (Tex. Crim. App. 2002)).

18 *See* *Ochoa v. State*, 707 S.W.3d 344, 353 (Tex. Crim. App. 2024) (concluding that the court would only address the dispositive issue before it and was not required to address the other two issues raised by the defendant).

19 The Code provides further requirements, which we do not address here.

20 *See also* *Matter of B.B.*, 567 S.W.3d at 790 (recognizing same) (citing *In re R.R.*, 931 S.W.2d 11, 14 (Tex. App.—Corpus Christi 1996, no writ); *In re D. M. G. H.*, 553 S.W.2d 827, 828 (Tex. Civ. App.—El Paso 1977, no writ)).

21 *See also* *Ray v. State*, 176 S.W.3d 544, 548 (Tex. App.—Houston [1st Dist.] 2004, pet. ref'd) ("[T]he Court of Criminal Appeals has repeatedly recognized the necessity of strict compliance with the Family Code provisions governing the handling of juvenile defendants.").

22 *See also* *In re D.J.C.*, 312 S.W.3d 704, 720–21 (Tex. App.—Houston [1st Dist.] 2009, no pet.) (recognizing that "any statement of a juvenile taken in violation of the provisions of the Family Code governing the substantial rights of a juvenile in custody is inadmissible at trial" and ruling that a juvenile's statement was therefore inadmissible at trial due to violations of Family Code §§ 52.02(a); 52.025(a), (b)(5), and (c); and 51.095(a)(1)(A) and (a)(5)).

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23 In support, the State relies on *Matter of B.B.*, but we do not find it helpful to the State's position. In that case, our sister court was faced with a situation in which the trial court went beyond reading a juvenile his rights, and instead began questioning the juvenile based on a list of questions provided by the arresting officer. 567 S.W.3d 786, 788–89 (Tex. App.—San Antonio 2018, no. pet). The court recognized that the provisions of the Family Code illustrate that "the Texas Legislature contemplated the magistrate would remain neutral and provide a protective check on the questioning of a juvenile in order to ensure the voluntariness of a juvenile's statement." *Id.* at 790 (citing *Missouri v. McNeely*, 569 U.S. 141, 155, 133 S.Ct. 1552, 185 L.Ed.2d 696 (2013) (noting "neutral magistrate judge's essential role as a check on police discretion")). And the court held that "a magistrate cannot be asked to remain neutral and impartial when engaged in investigative questioning." *Id.* at 791. In turn, the court held that the magistrate's questioning violated § 51.095, first, because the Code "only provides for questioning by peace officers or attorneys representing the state" (and only after the juvenile is warned of his rights), and second, the magistrate failed to maintain the requisite neutrality required by the statute. *Id.* at 790–91. We find nothing in *B.B.* that would support a finding that the Family Code's requirements of not having law enforcement present while reviewing a juvenile's statement would be fulfilled simply by ensuring that the meeting does not take place within hearing range of law enforcement.

24 Section 52.01 provides the circumstances under which "[a] child may be taken into custody," such as under the "laws of arrest." *See* Tex. Fam. Code Ann. § 52.01(a).

25 We note that F.M.V.'s willingness to tell Judge Priddy that he did not send the video to his girlfriend could have stemmed from a fear for her safety, as expressed in his earlier text messages to her, rather than from any "comfort" level that he felt during the meeting.

26 The State cites two cases in which our sister courts have held that it would "elevate form over substance" to find a juvenile's statement inadmissible where the juvenile was not interviewed in a designated juvenile processing office, as required by Family Code§ 52.025, but where the interview took place in an area where there were no adult offenders present at the time, thereby fulfilling the intent of the statute to separate juveniles from adult offenders. *See Williams v. State*, 995 S.W.2d 754, 758 (Tex. App.—San Antonio 1999, no pet.) (recognizing that the purpose of requiring juveniles to be interrogated in specially designated areas is to protect them from exposure to adult offenders and the stigma of criminality, and that the purpose was met where the juvenile was interviewed in an area where no one else was present at the time); *McIntyre v. State*, 619 S.W.3d 311, 328 (Tex. App.—Fort Worth 2021, pet. ref'd) (recognizing that it would elevate form over substance to hold that a juvenile's statement was inadmissible because it was not taken in designated juvenile processing office, where no offenders were present when the statement was taken). But these cases are readily distinguishable; unlike § 51.095 of the Code, which is an "independent exclusionary statute," § 52.025 does not expressly provide that a statement is inadmissible if it is not taken at a designated juvenile processing center. *See Gonzales v. State*, 67 S.W.3d 910, 913 (Tex. Crim. App. 2002). Instead, in determining whether a statement must be excluded due to a § 52.025 violation, the court looks to the Article 38.23(a) exclusionary rule, which has been interpreted to require a causal connection between the illegal conduct and the acquisition of the evidence, *id.* at 912, thereby giving the court more discretion to determine exclusion of evidence stemming from a § 52.025 violation as opposed to a § 51.095 violation.

27 Because juvenile cases are considered "quasi-criminal," we apply the criminal standard for determining whether F.M.V. was harmed by the erroneous admission of his statement. *See In re D.J.C.*, 312 S.W.3d 704, 711, 722 (Tex. App.—Houston [1st Dist.] 2009, no pet.) (citing Tex. Fam. Code Ann. § 51.17(a), (c); *In re B.L.D.*, 113 S.W.3d 340, 351 (Tex. 2003) (recognizing that juvenile delinquency cases are "quasi-criminal")); *see also In re U.G.*, 128 S.W.3d 797, 800 (Tex. App.—Corpus Christi–Edinburg 2004, pet. denied) (holding that because juvenile delinquency proceedings are "quasi-criminal" in nature, court would apply the criminal standard for conducting a harm analysis).

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APPENDIX 5

Vernon's Texas Statutes and Codes Annotated
Family Code (Refs & Annos)
Title 3. Juvenile Justice Code (Refs & Annos)
Chapter 51. General Provisions (Refs & Annos)

V.T.C.A., Family Code § 51.095

§ 51.095. Admissibility of a Statement of a Child

Currentness

(a) Notwithstanding Section 51.09, the statement of a child is admissible in evidence in any future proceeding concerning the matter about which the statement was given if:

(1) the statement is made in writing under a circumstance described by Subsection (d) and:

(A) the statement shows that the child has at some time before the making of the statement received from a magistrate a warning that:

(i) the child may remain silent and not make any statement at all and that any statement that the child makes may be used in evidence against the child;

(ii) the child has the right to have an attorney present to advise the child either prior to any questioning or during the questioning;

(iii) if the child is unable to employ an attorney, the child has the right to have an attorney appointed to counsel with the child before or during any interviews with peace officers or attorneys representing the state; and

(iv) the child has the right to terminate the interview at any time;

(B) and:

(i) the statement must be signed in the presence of a magistrate by the child with no law enforcement officer or prosecuting attorney present, except that a magistrate may require a bailiff or a law enforcement officer if a bailiff is not available to be present if the magistrate determines that the presence of the bailiff or law enforcement officer is necessary for the personal safety of the magistrate or other court personnel, provided that the bailiff or law enforcement officer may not carry a weapon in the presence of the child; and

(ii) the magistrate must be fully convinced that the child understands the nature and contents of the statement and that the child is signing the same voluntarily, and if a statement is taken, the magistrate must sign a written statement verifying the foregoing requisites have been met;

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(C) the child knowingly, intelligently, and voluntarily waives these rights before and during the making of the statement and signs the statement in the presence of a magistrate; and

(D) the magistrate certifies that the magistrate has examined the child independent of any law enforcement officer or prosecuting attorney, except as required to ensure the personal safety of the magistrate or other court personnel, and has determined that the child understands the nature and contents of the statement and has knowingly, intelligently, and voluntarily waived these rights;

(2) the statement is made orally and the child makes a statement of facts or circumstances that are found to be true and tend to establish the child's guilt, such as the finding of secreted or stolen property, or the instrument with which the child states the offense was committed;

(3) the statement was res gestae of the delinquent conduct or the conduct indicating a need for supervision or of the arrest;

(4) the statement is made:

(A) in open court at the child's adjudication hearing;

(B) before a grand jury considering a petition, under Section 53.045, that the child engaged in delinquent conduct; or

(C) at a preliminary hearing concerning the child held in compliance with this code, other than at a detention hearing under Section 54.01; or

(5) subject to Subsection (f), the statement is made orally under a circumstance described by Subsection (d) and the statement is recorded by an electronic recording device, including a device that records images, and:

(A) before making the statement, the child is given the warning described by Subdivision (1)(A) by a magistrate, the warning is a part of the recording, and the child knowingly, intelligently, and voluntarily waives each right stated in the warning;

(B) the recording device is capable of making an accurate recording, the operator of the device is competent to use the device, the recording is accurate, and the recording has not been altered;

(C) each voice on the recording is identified; and

(D) not later than the 20th day before the date of the proceeding, the attorney representing the child is given a complete and accurate copy of each recording of the child made under this subdivision.

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(b) This section and Section 51.09 do not preclude the admission of a statement made by the child if:

(1) the statement does not stem from interrogation of the child under a circumstance described by Subsection (d); or

(2) without regard to whether the statement stems from interrogation of the child under a circumstance described by Subsection (d), the statement is:

(A) voluntary and has a bearing on the credibility of the child as a witness; or

(B) recorded by an electronic recording device, including a device that records images, and is obtained:

(i) in another state in compliance with the laws of that state or this state; or

(ii) by a federal law enforcement officer in this state or another state in compliance with the laws of the United States.

(c) An electronic recording of a child's statement made under Subsection (a)(5) or (b)(2)(B) shall be preserved until all juvenile or criminal matters relating to any conduct referred to in the statement are final, including the exhaustion of all appeals, or barred from prosecution.

(d) Subsections (a)(1) and (a)(5) apply to the statement of a child made:

(1) while the child is in a detention facility or other place of confinement;

(2) while the child is in the custody of an officer; or

(3) during or after the interrogation of the child by an officer if the child is in the possession of the Department of Family and Protective Services and is suspected to have engaged in conduct that violates a penal law of this state.

(e) A juvenile law referee or master may perform the duties imposed on a magistrate under this section without the approval of the juvenile court if the juvenile board of the county in which the statement of the child is made has authorized a referee or master to perform the duties of a magistrate under this section.

(f) A magistrate who provides the warnings required by Subsection (a)(5) for a recorded statement may at the time the warnings are provided request by speaking on the recording that the officer return the child and the recording to the magistrate at the conclusion of the process of questioning. The magistrate may then view the recording with the child or have the child view the recording to enable the magistrate to determine whether the child's statements were given voluntarily. The magistrate's determination of voluntariness shall be reduced to writing and signed and dated by the magistrate. If a magistrate uses the procedure described by this subsection, a child's statement is not admissible unless the magistrate determines that the statement was given voluntarily.

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Added by Acts 1997, 75th Leg., ch. 1086, § 4, eff. Sept. 1, 1997. Amended by Acts 1999, 76th Leg., ch. 982, § 1, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1477, § 1, eff. Sept. 1, 1999; Acts 2001, 77th Leg., ch. 1297, § 7, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1420, § 21.001(29), eff. Sept. 1, 2001; Acts 2005, 79th Leg., ch. 949, § 5, eff. Sept. 1, 2005; Acts 2007, 80th Leg., ch. 908, § 8, eff. Sept. 1, 2007; Acts 2011, 82nd Leg., ch. 110 (H.B. 841), § 3, eff. May 21, 2011; Acts 2011, 82nd Leg., ch. 1158 (H.B. 2337), § 1, eff. Sept. 1, 2011.

V. T. C. A., Family Code § 51.095, TX FAMILY § 51.095

Current through the end of the 2025 Regular, First Called and Chapters 2 through 4 of the Second Called Sessions of the 89th Legislature.

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